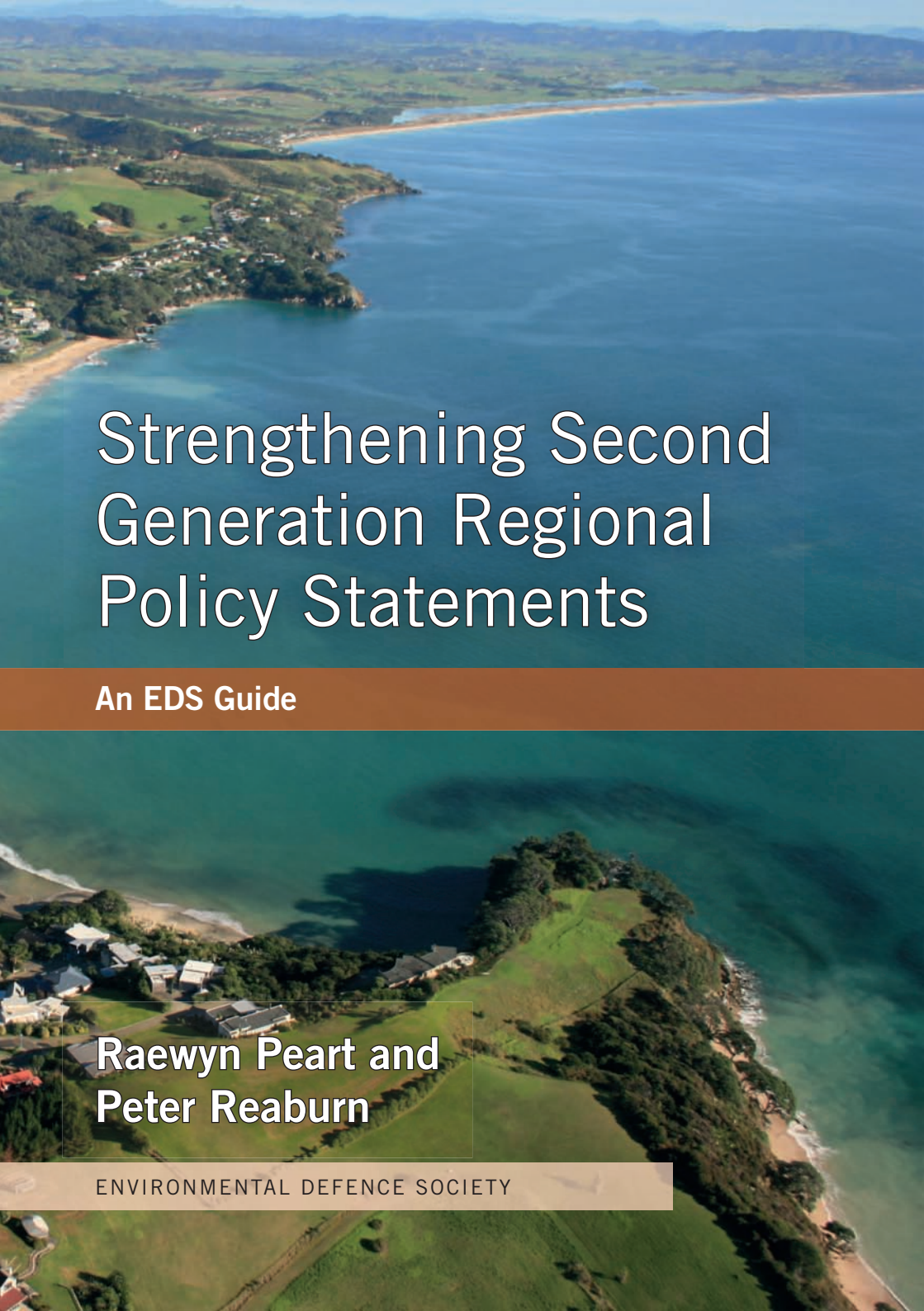




Strengthening Second Generation Regional Policy Statements

An EDS Guide

Raewyn Peart and
Peter Reaburn

ENVIRONMENTAL DEFENCE SOCIETY

Strengthening Second Generation Regional Policy Statements

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Environmental Defence Society Incorporated
P O Box 95 152
Swanson
Auckland 0653
New Zealand

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and Peter Reaburn

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For more information, contact:

Care for the Wild International
The Granary
Tickfold Farm
Kingsfold
West Sussex
RH12 3SE, United Kingdom
www.careforthewild.com



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P O Box 95 152
Swanson
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Phone +64 9 480 2565
manager@eds.org.nz
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contents

ix	Table of Figures
x	Preface
xi	Companion Guides
xi	Disclaimer
xii	Environmental Defence Society
xii	Acknowledgements
	Part one General Issues
4	one Introduction
	two Legal framework
8	Purpose of RPSs
8	Substantive matters that RPSs must address
10	Regional legal variations
11	Components of RPSs
14	Combining RPS with other plans
14	Constraints on the content of RPSs
15	Effect of RPSs
15	Changes to RPSs
15	Relationship with other regional planning documents
	three Role of RPSs
20	Achieving integrated management
21	Providing a strategic approach
22	Addressing cumulative impacts
22	Identifying natural resources and ecosystems
22	Implementing co-governance

four	Tangata whenua and kaitiakitanga
24	A values-based approach
24	RPS process issues
25	Some resource issues to consider
27	Input into the review process
five	Form and Structure
30	Analysis and identification of issues
30	Keeping it relevant
31	Design for the web
31	Sub-regional chapters
32	Linkage between elements
six	Mapping
36	Improving clarity
37	Facilitating integrated management
37	Connecting science and policy
37	Implementing the NZCPS 2010
38	Content of maps
39	Examples of maps
seven	Issues of regional significance
48	What are issues of regional significance?
48	Identifying issues
49	Identifying key issues
50	Focusing on underlying causes
50	Characteristics of a good issue statement
51	Examples of issue descriptions
eight	Objectives and policies
56	Characteristics of objectives
57	Examples of objectives
59	Characteristics of policies
59	Examples of policies
nine	Monitoring
64	Legal requirements
64	Design of monitoring system
65	Examples of monitoring provisions
ten	General checklist for RPSs
68	Issues
68	Objectives

68	Policies
68	Maps
69	Tangata whenua
69	Form and structure
69	Monitoring
Part two	Addressing specific issues
eleven	Natural resources, ecosystems and biodiversity
74	Issues
75	RMA provisions
76	Content of RPS
twelve	Hector's and Maui's dolphins
78	Issues
79	Fishing activity
81	Aquaculture
82	Vessels
83	Pollution
83	Coastal activities
84	RMA provisions
86	Content of RPSs
thirteen	Growth management
90	Issues
90	RMA provisions
90	Content of RPS
fourteen	Landscape protection
94	Issues
94	RMA provisions
94	Natural landscapes
95	Heritage and cultural landscapes
97	Content of RPS
fifteen	Coastal development
100	Issues
100	RMA provisions
103	Content of RPS
sixteen	Coastal hazards
106	Issues
106	RMA provisions
107	Content of RPS

	seventeen	Marine management
110		Issues
110		RMA provisions
111		Activities in the coastal marine area
111		Invasive species
111		Contaminants
112		Content of RPS
	eighteen	Freshwater management
116		Issues
116		RMA provisions
117		Content of RPS
	nineteen	Soil conservation
120		Issues
121		RMA provisions
121		Content of RPS
123		Conclusion
	Appendix 1:	Other legislative provisions applying to Hector's and Maui's dolphins
126		Marine Mammal Protection Act provisions
133		Fisheries Act provisions
	Appendix 2:	Relevant legal provisions
136		Purpose and principles of the RMA
138		Requirements for regional policy statements under the RMA
140		Relevant sections of the Waitakere Ranges Heritage Area Act 2008
143		Relevant sections of the Hauraki Gulf Marine Park Act 2000
145		Relevant sections of the Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010
149		References and further information
152		Endnotes

Figures

10	1	Waitakere Ranges
12	2	Relationship between RPS components
13	3	Practical illustration of RPS elements for soil conservation
16	4	Gulf Harbour
25	5	Meaning of kaitiakitanga
32	6	Tokerau Bay
33	7	Table showing relationship between some RPS elements for air quality
38	8	Kawau Bay
41	9	Map showing urban limits
42	10	Map identifying regional focus areas
42	11	Map identifying regionally outstanding natural
43	12	Map identifying marine areas susceptible to degradation
44	13	Map identifying the coastal environment
45	14	Map identifying Maui's dolphin habitat
49	15	Mahurangi harbour
65	16	Example of monitoring provisions in the Bay of Plenty draft RPS 2010
75	17	NZCPS policy 11 Indigenous biological diversity
80	18	Hector's and Maui's dolphin distribution map
82	19	Marine mammal tourism in Akaroa harbour
87	20	Summary of threats to Hector's and Maui's dolphins and RMA responses
96	21	NZCPS policy 15 Natural features and natural landscapes
98	22	Auckland RPS 1999 6.4.19 Policies Landscape
101	23	NZCPS 2010 policy 1 Extent and characteristics of the coastal environment
102	24	NZCPS Policy 13 Preservation of natural character
103	25	NZCPS policy 7 Strategic planning
107	26	NZCPS Policy 24 Identification of coastal hazards
128	27	Banks Peninsula Marine Mammal Sanctuary
129	28	Catlins Coast Marine Mammal Sanctuary
130	29	Clifford and Cloudy Bay Marine Mammal Sanctuary
131	30	Te Waewae Bay Marine Mammal Sanctuary
132	31	West Coast North Island Marine Mammal Sanctuary
134	32	Summary of fishing restrictions to protect Hector's and Maui's dolphins

Preface

This Guide is designed to provide practical guidance to all those involved in the development of second generation regional policy statements (RPSs). This includes elected members and officers from regional councils and territorial authorities, officials from government agencies, iwi and hapū resource managers, and other stakeholders from the business, community and environmental sectors.

The Guide summarises learnings from first generation RPSs and sets out what should be included in second generation RPSs and why.

The Guide has been structured around two parts.

Part One addresses general issues relevant to the preparation of second generation RPSs including the legal framework, the role of RPSs, and what they should generically contain.

Part Two of the Guide focuses on key resource management issues including natural resources, ecosystems and biodiversity, protection of Hector's and Maui's dolphins, managing growth, landscape protection, coastal development, coastal hazards, the coastal marine area, freshwater and soil conservation. Appendix 1 of the Guide contains additional information on non-RMA legal provisions affecting Hector's and Maui's dolphins. Appendix 2 contains extracts of relevant legislation.

The material in the Guide has been drawn from a range of sources including a workshop held by the Environmental Defence Society on 27 April 2010, notes from a workshop on plan structure and provision writing convened by the Ministry for the Environment in 2005, material on the Quality Planning website, peer reviewers, and the collective experience of the Environmental Defence Society and its advisors in resource management issues. The material in the Guide was peer reviewed before finalisation (see acknowledgements).

Companion Guides

There are five companion volumes to this Guide:

- *The New Zealanders' Guide to the Resource Management Act 1991* which provides more detailed information about participating in processes under the RMA
- *Managing the Marine Environment* which provides information on the management of the marine area, and the impact of catchment management on marine habitats and species
- *Managing Freshwater* which provides information on the management of freshwater systems in New Zealand including rivers, lakes, wetlands and aquifers
- *The Community Guide to Coastal Development under the Resource Management Act 1991* which provides information on managing coastal development under the RMA
- *The Community Guide to Landscape Protection under the Resource Management Act 1991* which provides information on addressing landscape management issues under the RMA

Web-based versions of all guides can be found at www.rmaguide.org.nz. Hard copies can be obtained from the Environment Defence Society Incorporated, PO Box 95 152 Swanson, Auckland, 0653. See www.eds.org.nz for more details.

Disclaimer

The material in this guide is provided in good faith, but with no guarantee as to it being comprehensive or accurate. The Guide is not a substitute for proper professional advice where that is needed.

Environmental Defence Society

The Environmental Defence Society is a not-for-profit environmental organisation consisting largely of resource management professionals. If you would like to find out more about the Society, or support its environmental programmes, please visit the society's website at www.eds.org.nz.

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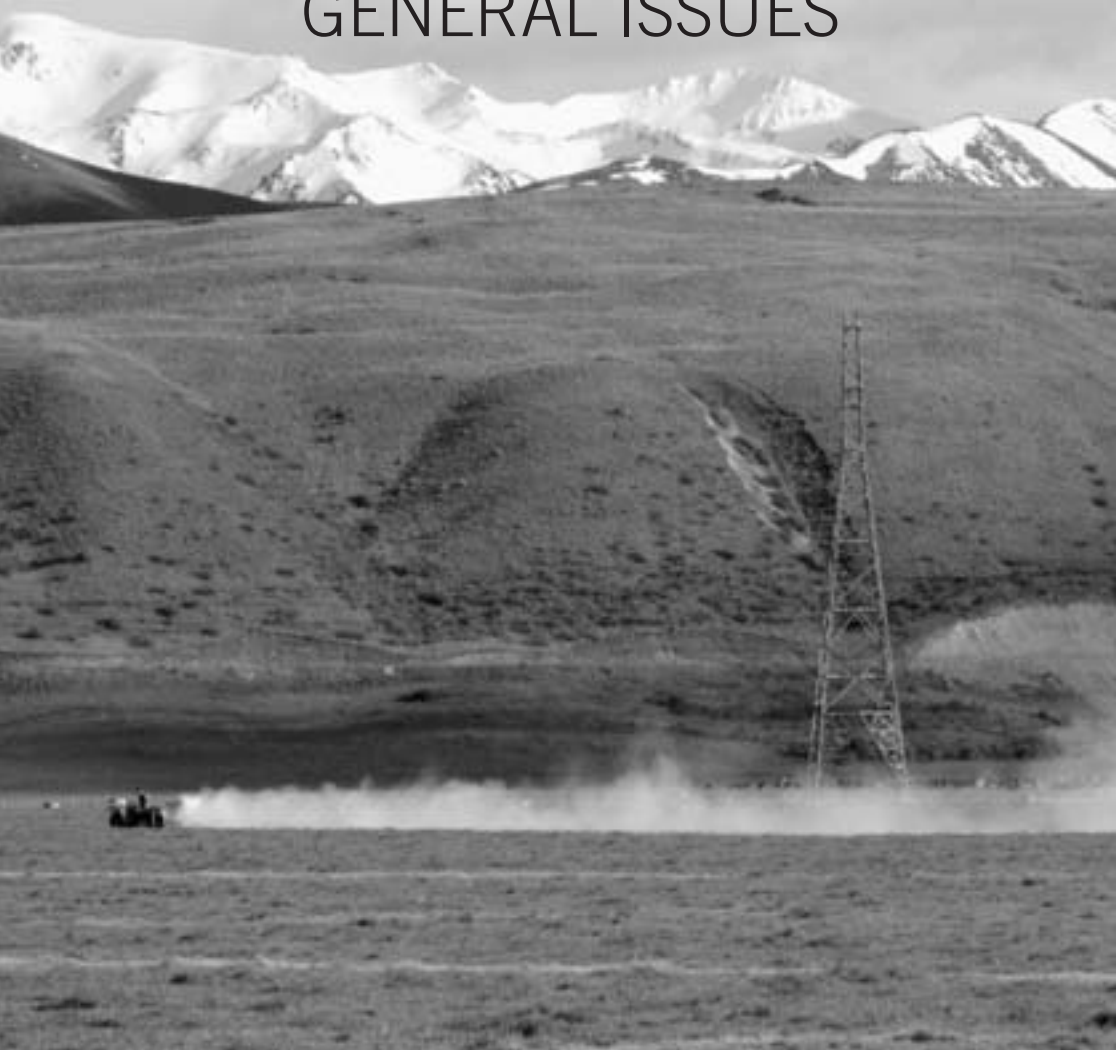
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The final contents of the Guide remain the responsibility of the authors.

PART ONE

GENERAL ISSUES





one

Introduction

Introduction

Regional policy statements were some of the earliest documents prepared under the Resource Management Act 1991 (RMA) when it came into force almost 20 years ago. Many RPSs are now under review and second generation documents are being prepared.

Regional policy statements are important in the RMA hierarchy of policies and plans. They are the only documents which provide an integrated overview of the management of air, land, freshwater systems, the coast and the marine area. They play a critical role in setting out integrated resource management frameworks for issues that affect more than one district. They also play an important role in the hierarchy of RMA plans. Regional and district plans are required to give effect to RPSs, so they can have a significant impact on what happens on the ground through influencing all RMA plans within their region.

Regional policy statements are therefore the heart of resource management within a region. Unfortunately the role and effectiveness of RPSs to date has not lived up to their potential.

Much has been learnt from the experience of first generation RPSs. A key issue has been the failure of many RPSs to add significant value to resource management efforts. This is due to a number of factors including:

- *Lack of coordination* – creating uncertainty as to roles and responsibilities and resulting in duplication and gaps
- *Failure to address land-use planning issues* – which drive many key regional environmental outcomes
- *Lack of focus* – so that effort was dispersed and not focused on achieving significant regional outcomes
- *Use of vague and uncertain language* – sometimes doing little more than restating provisions of the RMA
- *Lack of maps* – resulting in considerable uncertainty as to the spatial application of policy
- *Lack of technical rigour* – with the provisions unsupported by good information or a sound RMA rationale
- *Poor links with budgeting* – so that non-regulatory activities, such as education and financial incentives, were not budgeted for under the Local Government Act 2002 and consequently were not able to be undertaken

- *Lack of implementation* – with poor linkages between national policy statements, the RPS, RMA plans and resource consenting
- *Lack of monitoring* – so that the effectiveness of RPSs could not be assessed and adjustments made in a timely manner. The use of vague and uncertain language in RPS provisions made it difficult for suitable indicators to be identified which could guide robust monitoring processes

New Zealand is currently facing many significant environmental challenges. At the same time, the resources available to address these challenges are limited. The preparation of RPSs, and the public submission and appeal process which is undergone before finalisation, are resource intensive for all parties. So, it is important that the second generation RPSs do add value and do drive significant improvements in environmental outcomes on the ground. To achieve this, it is essential to learn from the experience of first generation RPSs and not to repeat the same mistakes.

This Guide is intended to help achieve an effective and consistent approach to the development of second generation RPSs.



two

Legal Framework

Legal framework

Regional policy statements are prepared under the RMA which requires all regional councils to prepare a RPS for their region. This chapter describes the legal framework that guides the structure and content of RPSs.

Purpose of RPSs

The purpose of a RPS is to achieve the purpose of the RMA – to promote the sustainable management of natural and physical resources – through two mechanisms (section 59):

- Providing an overview of the *resource management issues* of the region
- Providing policies and methods to achieve *integrated management* of the natural and physical resources of the whole region

The region includes all the resources associated with land, freshwater bodies and air, as well as the coast and marine area extending out to the edge of the territorial sea (12 nautical miles offshore).

Under section 2 of the RMA, ‘natural and physical resources’ is defined as including ‘land, water, air, soil, minerals, and energy, all forms of plants and animals (whether native to New Zealand or introduced), and all structures.’ Therefore RPSs have a role in managing both the natural environment and urban environments.

RPSs have been identified by the Environment Court as the ‘primary instrument’ under the RMA to achieve *integrated management* of all these resources for the *entire region*.¹ The Environment Court has noted that integrated management is ‘intended to be more than an empty slogan’.² The concept of integrated management recognises the interrelationship between resources and that the protection of one may be to the detriment of another.³

Substantive matters that RPSs must address

In order to achieve the purpose of the RMA as set out in section 5 (see Appendix 2), RPSs need to focus on:

- Sustaining natural and physical resources in the long term for the benefit of future generations
- Safeguarding the life-supporting capacity of air, water, soil and ecosystems

- Avoiding and/or remedying and/or mitigating the regionally significant adverse effects of activities on the environment

These matters collectively indicate a need to strategically look ahead to the future; to address cumulative effects over space and time; to adopt an eco-systems based approach to management that focuses on maintaining healthy functioning natural systems; to recognise environmental bottom lines; and to reduce the environmental impacts of activities.

Under section 5, RPSs need to apply these approaches in a manner which still enables people and communities to provide for their social, economic, and cultural needs and their health and safety.

In preparing a RPS, regional councils must also ‘recognise and provide for’ the matters of national importance set out in section 6 of the RMA (these are set out in full in Appendix 2). This means that RPSs needs to address:

- Natural character of the coastal environment and freshwater bodies
- Outstanding natural features and landscapes
- Significant areas of indigenous vegetation and significant habitats
- Public access to and along the coastal marine area and freshwater bodies
- Relationship of Māori with natural and physical resources
- Historic heritage
- Recognised customary activities

Councils also need to have ‘particular regard’ to the matters set out in section 7, but these do not need to be specifically addressed in the RPS if they are not relevant to regional issues. These matters are also reproduced in Appendix 2.

Regional policy statements must ‘give effect to’ any national policy statements and the New Zealand Coastal Policy Statement (NZCPS). ‘Give effect to’ can be broadly translated to mean ‘actively implement’.⁴ A regional council therefore needs to identify how relevant provisions of national policy statements have been given effect to in its RPS. The RPS can also usefully provide guidance on how national policy should be implemented at a district level within the region.

At the time of writing there were two national policy statements in force – the revised NZCPS, which came into force on 3 December 2010, and the National Policy Statement on Electricity Transmission. A proposed National Policy Statement on Freshwater Resources has been considered by a Board of

Inquiry and awaits the final decision of the Minister for the Environment. A proposed National Policy Statement on Indigenous Biodiversity was released for public submission on 29 January 2011.

Regional legal variations

There are some regional variations in the legal requirements for RPSs. Regional policy statements in the Auckland region must ‘give effect to’ the purpose and objectives set out in section 8 of the *Waitakere Ranges Heritage Area Act 2008*.



Figure 1: Waitakere Ranges *Regional policy statements in the Auckland region need to ‘give effect to’ the purpose and objectives of the Waitakere Ranges Heritage Area Act 2008*

In the Auckland and Waikato regions, RPSs must ‘give effect’ to sections 7 and 8 of the *Hauraki Gulf Marine Park Act 2000* as though they were a national policy statement. In the coastal environment of the Hauraki Gulf, those sections must be treated as a NZCPS.

The RPS in the Waikato region must include the vision and strategy for the Waikato River as set out in Schedule 2 of the *Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010*. The regional council must amend other provisions of the regional policy statement, if necessary, to make them consistent with the vision and strategy.

Relevant sections from these regional Acts are reproduced in Appendix 2.

Other legislation, resulting from deeds of settlement between the Crown and Māori groups, require local authorities to attach information to RPSs recording statutory acknowledgments. These are acknowledgments by the Crown of a claimant group’s particular cultural, spiritual, historical and traditional association with specified areas. Examples of such legislation include the *Tē Roroa Claims Settlement Act 2008* and the *Tē Uri o Hau Claims Settlement Act 2002*.

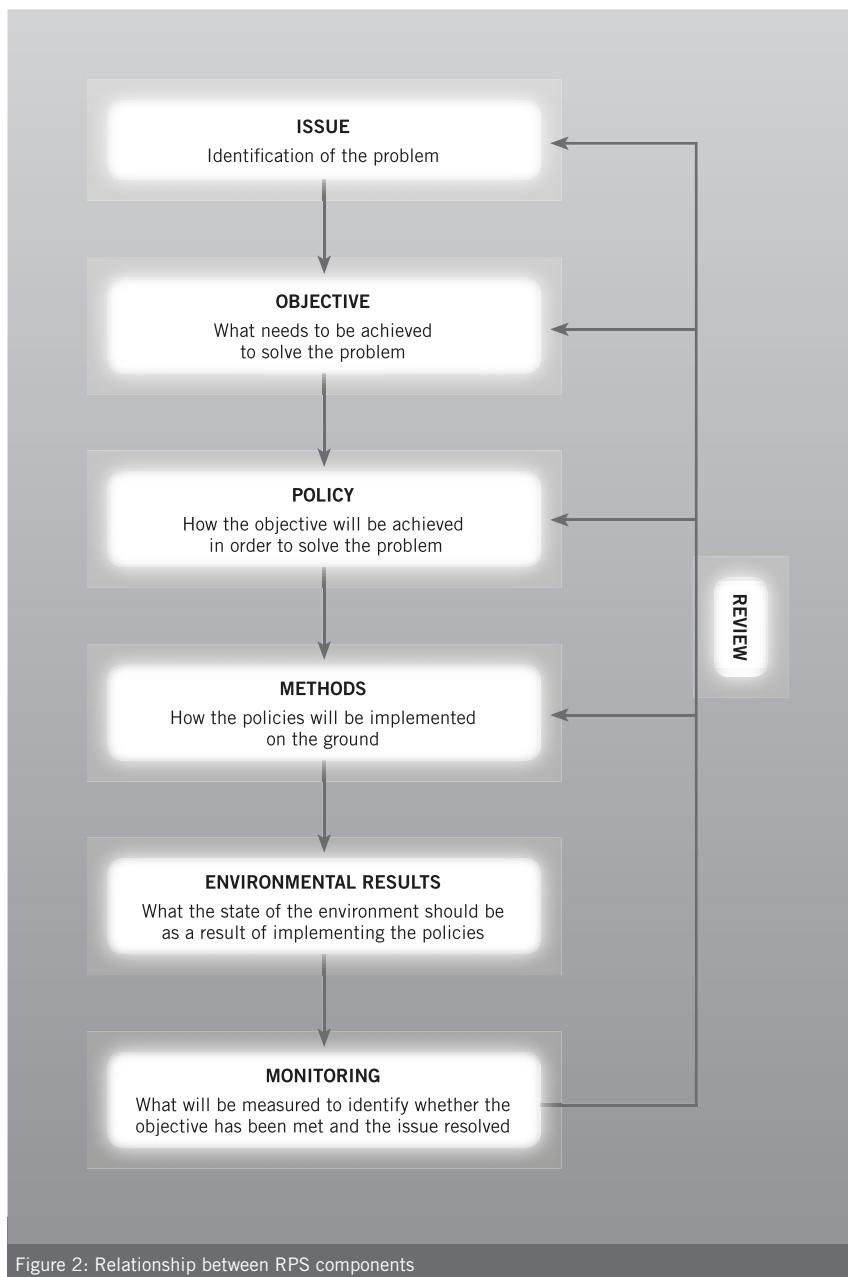
Components of RPSs

Section 62 of the RMA identifies components that must be included in a RPS. These are:

- *Issues* – the significant resource management issues for the region and the resource management issues of significance to iwi authorities in the region
- *Objectives* – what is sought to be achieved
- *Policies* – relating to the issues and objectives, including an explanation of those policies
- *Methods* – to implement the policies but excluding rules
- *Principal reasons* – for adopting objectives, policies and methods
- *Anticipated environmental results* – what environmental outcomes will be achieved
- *Cross-boundary issues* – what they are and processes to deal with them
- *Local authority responsibilities* – over parts of, or the whole of, the region for natural hazards, hazardous substances and biological diversity for which regional councils and territorial authorities have overlapping responsibilities
- *Monitoring* – procedures to measure the efficiency and effectiveness of the policies and methods
- *Any other information* – required for the regional council's functions under the RMA

Section 62 addresses the necessary elements of a RPS, rather than the substance, which is addressed in Part 2 of the RMA as described above. The Environment Court has confirmed that if a regional council identifies a significant resource management issue within a region, it must also state policies, and methods to be used to implement the policies.⁵

The key elements of the RPS, and the relationship between the elements, are shown in Figures 2 and 3 below. A review of some, or all, of the provisions of an RPS can be undertaken by the council at any time. Such a review may be prompted by a range of circumstances including state of the environment monitoring, policy and plan monitoring, technical analysis, court decisions or public complaints.



SOILS AND LAND USE

ISSUES

- Degradation in the quality and life-supporting capacity of soils
- Land-use activities which reduce the availability of land comprising versatile soils, thereby foreclosing future options
- Land-use activities which result in soil contamination and consequent adverse effects
- Land-use effects on water quantity and quality in catchments

OBJECTIVES

- Safeguard the life supporting capacity of soils
- Maintain or restore soil quality factors
- Prevent, as far as practicable, induced erosion
- Minimise the irreversible effect of land use activities on versatile soils where practicable
- Protect the environment from adverse effects of land contamination

POLICIES

- Minimise land-use activities that would have adverse effects on soil quality factors
- Adopt best practicable methods, or where necessary to reduce soil erosion and siltation, cease some activities
- Maintain or restore adequate vegetative cover on non-arable land
- Remedy existing induced soil erosion
- Encourage support for plant and animal pest strategies by landowners and occupiers
- Avoid the irreversible use of land containing versatile soils
- Avoid, remedy, or mitigate adverse effects of contaminated land

METHODS

- Regional Plans
- Iwi Management Plans
- Investigations
- Information Provision
- Land owner/occupier groups
- Use of other legislation
- Advocacy, promotion and co-operation
- Emergency Action
- Resource Consents
- District Plan Provisions

MONITORING

- Trends in key soil quality indicators
- Degree of adoption of practices that minimise soil erosion
- Incidents of soil erosion
- Incidents of land contamination
- Incidents of unauthorised vegetation clearance on non-arable land
- Trends in plant and animal pest populations
- Loss of the most versatile land to irreversible uses
- Vegetation trends in the high country

ENVIRONMENTAL RESULTS

- Maintenance and improvement of soil quality
- Reduced vulnerability to soil erosion
- Reduced adverse effects from land contamination
- Reduced adverse effects from burning
- More sustainable land-use practices
- Control on plant and animal pests
- Protection of wāhi tapu and wāhi taonga, landscape, and indigenous flora and fauna

Source: Canterbury RPS, 1998, page 74

Figure 3: Practical illustration of RPS elements for soil conservation

Combining RPSs with other plans

The RMA allows councils to combine RPSs with other RMA planning documents including regional plans, regional coastal plans and district plans (section 80). It is now possible to have a single RMA document for an entire region. These provisions also enable a regional council to join with other regional councils to prepare a joint RPS or another joint combination of regional RMA documents.

When such a combined document is prepared, it must clearly identify the provisions that comprise the RPS including objectives, policies and methods (section 80(8)). This is to make it clear which parts of the combined document will need to be given effect to by other plans, and which parts cannot be changed by privately-initiated plan changes.

Constraints on the content of RPSs

Regional councils have a broad discretion to include a range of provisions in their RPSs, so long as they are within the scope of the RMA, and the provisions can be justified under the requirements of section 32. This section requires that, before a proposed RPS is publicly notified, the regional council must carry out an evaluation that examines:

- The extent to which each objective is the most *appropriate* way to achieve the purpose of the RMA
- Whether, having regard to their *efficiency and effectiveness*, the policies or other methods are the most *appropriate* for achieving the objectives. This must take into account the *benefits and costs* of the policies and any other methods proposed and the risk of acting or not acting if there is uncertain or insufficient information.

This evaluation, and justification for the inclusion of various provisions in an RPS, is set out in a 'section 32 report'. For example, the section 32 report is likely to discuss which provisions have been included to implement national policy direction. Directing explanations and discussion into the section 32 report, as opposed to the RPS itself, assists in keeping the RPS clear and succinct.

Regional policy statements cannot contain rules. Objectives and policies in RPSs can, however, be quite detailed and prescriptive (see chapter 8). Regional councils do not have the power to include policies relating to international agreements within RPSs such as the World Trade Organisation Rules or the Rio Declaration.⁶ The Environment Court has held that regional councils do not have such jurisdiction as RPSs are documents concerned with regional resource management issues.⁷

Effect of RPSs

Although a RPS cannot contain rules, regional and district plans are required to 'give effect to' the relevant RPS, and these documents do contain rules. Therefore, a major role of RPSs is to provide a regional framework to guide the content of regional and district plans and thereby assist in an integrated approach to management of particular issues.

When resource consents and other matters are considered under the RMA, the decision-maker must 'have regard to' the RPS. Regional policy statements can therefore have a direct impact on resource consent processes, although their provisions can be outweighed by other relevant factors.

Changes to RPSs

Although any person may request a change to a district or regional plan, commonly termed 'private plan changes', this is not the case with RPSs. Only Ministers of the Crown or territorial authorities can request a change to a RPS (clause 21, First Schedule). This means that the RPS provides more certain direction for the management of resources in the region as it is not subject to *ad hoc* changes at the request of individuals or resource owners and users.

Relationship with other regional planning documents

Since the RMA came into force in 1991, more recent legislation has required regional councils to prepare other regional planning documents. These include regional land transport strategies under the Land Transport Management Act 2003 and long term council community plans under the Local Government Act 2002.

The overarching purpose of all this legislation is focused on sustainability. For the RMA it is sustainable management, for the Local Government Act it is sustainable development and for the Land Transport Management Act it is a sustainable land transport system, amongst other things.

When preparing its RPS, a regional council is required to have regard to 'management plans and strategies prepared under other Acts' (section 61(2)(a)(i)) and these include these other regional planning documents.

Regional land transport strategies need to be 'consistent with' the RPS (section 75(a)(iii)(B), Land Transport Management Act). A RPS can therefore have a major role in influencing the direction and content of these transport strategies. Regional councils have the function of 'the strategic integration of infrastructure with land use through objectives, policies, and methods' (section 30(1)(gb), RMA). The RPS and regional land transport strategy need to be closely aligned if this is to be achieved.



Figure 4: Gulf Harbour *Regional land transport strategies need to be consistent with the RPS so that it can influence the direction and content of these strategies*

There is not a similar direct legal linkage between RPSs and long term council community plans although there is a practical connection. The purpose of the regional council's long term council community plan is to describe the community outcomes of the region, and to provide for integrated decision-making and coordination of the resources of the council, amongst other things. The plan must cover at least ten years (section 93, Local Government Act).

Community outcomes reflect community aspirations so can help in identifying issues which need to be addressed by the RPS. Conversely, methods identified within the RPS which require council resources, will need to be provided for in the long term council community plan. One approach which can be used to achieve better integration between these two plans is the development of an implementation plan which sits alongside the RPS. This can detail, for each method, who will implement it, when and how much it will cost.

'Management plans and strategies prepared under other Acts', which regional councils are required to have regard to when preparing RPSs, also include conservation management strategies prepared by the Department of Conservation under section 17D of the Conservation Act 1987 and fisheries

plans approved by the Minister of Fisheries under section 11A of the Fisheries Act 1996.

When preparing its RPS, a regional council must take into account any relevant planning document recognised by an iwi authority and lodged with the council, to the extent that its content has a bearing on resource management issues of the region (s61(2A)(a)). Regional councils must also have regard to regulations or bylaws relating to Māori customary fishing, including taiāpure and mahinga mātaītai, to the extent that their content has a bearing on resource management issues of the region (s61(2)(a)(iii)). Taiāpure and mahinga mātaītai facilitate Māori kaitiakitanga in the marine environment.⁸



three

Role of RPSs

Role of RPSs

The RPS ‘is the heart of resource management in a region’.⁹ The RPS not only guides the activities of the regional council, but more importantly, it provides direction for all resource managers within the region. Therefore, an RPS should be viewed not as a ‘regional council’ document, but rather as a ‘regional’ document.

Achieving integrated management

A key purpose of the RPS is to achieve ‘integrated management’ of the resources of the region. The term ‘integrated management’ is not defined in the RMA. So what does it mean in practice? The concept encompasses several dimensions:

- Taking a *holistic and comprehensive* approach to the management of the resources within the region
- Ensuring the issues are well-researched, analysed and understood, including identifying and addressing *underlying causes* of issues
- Being *strategic*, focusing on important issues of regional importance, and putting in place mechanisms to achieve long-term outcomes rather than focusing on case-by-case, incremental and fragmented decision-making
- Taking account of the *interconnections* between different elements of the environment, especially between terrestrial, freshwater, coastal and marine systems and resources
- Taking account of the *diversity* of interests and values, including values held by iwi, that are associated with the region’s resources
- *Coordinating* between different management agencies that are involved in managing the resources of the region and in managing resources that cross regional boundaries
- Taking account of the *interconnections* between the RPS and plans under other legislation such as the regional land transport strategy
- Being *adaptive and interactive* so that practical learnings and outcomes are fed back and integrated into the management system in a timely fashion
- Utilising different *knowledge systems* including mātauranga and kaitiakitanga as well as Western science

A key role of the RPS is to achieve integration between national, regional and local resource management within the region. To achieve this, the RPS needs to clearly identify how national policy will be implemented within the region. The RPS needs to set out what roles regional councils and territorial authorities will play in achieving national and regional outcomes. It also needs to provide clarity as to what is to be achieved, to ensure that all resource managers within the region are working towards common objectives, and apply consistent policies in order to do so.

Providing a strategic approach

Effective integrated management requires a strategic approach to be applied to the development of the RPS. This is to ensure that the RPS is a forward looking document, makes key regional decisions, and provides overall direction for the region.

A strategic approach at the regional level means identification of the key issues which will affect a region's future. It also means identification of the outcomes in relation to those key issues, providing regional futures which are likely to have least adverse effects on the regional environment, whilst as closely as possible matching the social, economic, and cultural needs of the regional community.¹⁰

Being strategic means being very clear about where the region is headed and what outcomes are to be achieved, how they are to be achieved, and within what timeframe. It means focusing on the regionally significant 'big picture' issues and grappling with how they are to be addressed. It means making key decisions about the location and timing of development and the protection of key resources within the region.

Although all provisions of a RPS need to be reviewed at least every 10 years (section 79(1)), the planning horizon for the document needs to be considerably longer. A minimum of 20 to 30 years is required to enable a long-term, strategic approach to be taken and to enable the co-ordination of land use and infrastructure development.

This approach is consistent with section 77 of the Land Transport Management Act which requires regional councils to take a 30 year perspective in relation to future land use patterns. The NZCPS 2010 applies a 100 year horizon in relation to assessing the suitability of a site for reclamation (policy 10), and assessing coastal hazard risks (policies 24, 25, 27). The proposed Waikato RPS (2010) has taken a 100 year planning horizon and directs district plans to do the same.

Addressing cumulative impacts

It is only through strategic and decisive regional policy that the cumulative impacts of activities will be effectively addressed. The gradual accumulation of small effects over time, which cumulatively amount to a significant effect, is often referred to as ‘death by a thousand cuts’. Cumulative effects can arise as a result of numerous case-by-case decisions being made in the absence of a strong regional policy context.

Such a context requires a good understanding of regional priorities, the overall carrying capacity of the systems being impacted upon, and the extent to which environmental limits are likely to be reached. Regional policy statements can provide direction on how activities approaching or exceeding the environmental limits of natural systems are to be managed, and monitored.

Identifying natural resources and ecosystems

The focus of resource management approaches in many New Zealand RMA plans is on ‘human’ activity – how the actions of people affect one another. This is particularly the case with many district plans. Often the identification of the natural environment, and issues relating to the effects of human activity on the natural environment, are secondary considerations. Regional policy statements can address natural resource management in a more comprehensive and transparent way than other RMA planning documents. They can also give clear direction on how natural resource issues should be addressed in district and regional plans.

Implementing co-governance

The RPS is an important tool through which co-governance agreements between iwi and the Crown can be given practical effect. This is because the RPS makes the key strategic decisions about resource management for the region and therefore provides the opportunity for these high-level decisions to reflect iwi concerns.

The *Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010* provides an example of how this can be achieved. Section 11 of that Act provides that the vision and strategy document that is prepared and reviewed by the Waikato River Authority is deemed to be part of the Waikato RPS without the use of the Schedule 1 public submission process in the RMA.



four

Tangata whenua
and kaitiakitanga

Tangata whenua and kaitiakitanga

Many Māori took the opportunity to engage with development processes for first generation RPSs, but were disappointed with the results. General shortcomings of those first generation documents have been identified in Chapter 1. Elsewhere in this Guide specific resource issues are addressed. Many of these are equally relevant for Māori, although often with different priorities and perspectives.

Reviewing RPSs provides an opportunity for Māori to shape critical components of the second generation documents to better provide for kaitiakitanga, for Māori values, and to maximise the engagement in ongoing processes.

A values-based approach

Kaitiakitanga-based values, while often compatible with those of the RMA and environmental sustainability, can be significantly different from those of planners in regional councils. Clearly articulating those values, and their consequences, can help ensure that the resulting RPS adequately provides for them.

In order to help achieve this, tangata whenua can consider the values of kaitiakitanga, the nature of concepts such as mauri and wairua, the details of processes such as rahui, and articulate how they are understood and practised by them. This can form the basis for identifying what provisions in a RPS would provide appropriately for tangata whenua, which can in turn be used to influence how the RPS review progresses.

In the coastal environment, councils are required to ‘provide for opportunities for tangata whenua to exercise kaitiakitanga over waters, forests, lands and fisheries’ (policy 2(f), NZCPS 2010).

RPS process issues

Expressing the values and concepts of Māori environmental management with their essence retained, but at the same time in a way that adequately informs the process of developing second generation RPSs, can be a major challenge. If this is to be successfully achieved, it requires an effective participatory process for tangata whenua and councils.

Councils need to resource such a process to ensure that it is successful. This is likely to be cost effective, as it is cheaper to initially structure the RPS appropriately, rather than to correct it later through expensive appeals.

Kaitiakitanga' is now part of the vocabulary of environmental managers in New Zealand, but understanding of its full significance is usually limited. The RMA defines 'kaitiakitanga' as 'the exercise of guardianship by the tangata whenua of an area in accordance with tikanga Māori in relation to natural and physical resources, and includes the ethic of stewardship'. Unfortunately, there is little case law or published best practice to guide practitioners in its application.

In a broad sense, kaitiakitanga is:

- Integrated with the spiritual, cultural and social life of tangata whenua
- Holistic across land and sea
- Inclusive of people within the concept of environment
- Locally defined and exercised
- Not focused on ownership, but on authority and responsibility
- Concerned with both sustainability of the environment and the utilisation of its benefits.

Traditionally kaitiaki had a guardian and stewardship role for natural resources. While individuals may have had specific roles, they were exercised as part of a collective responsibility determined through whakapapa and tikanga. The allocation and distribution of the benefits from those resources were further kaitiaki responsibilities. Tribal mana has, in most aspects of natural resources, been supplanted by legal ownership and statutory regulation. How traditional kaitiakitanga can adapt to today's changed circumstances is a major challenge for tangata whenua.

In practice, management of natural resources is exercised either by those having formal legal ownership, or through the exercise of statutory authority. The Māori proportion of land and resources ownership is still relatively small when compared with that of non-Māori private ownership and the Crown Estate. Exercise of kaitiakitanga today must often be implemented through opportunities within the legal framework.

Source: Peart and Mulcahy, 2010, 44-46

Figure 5: Meaning of kaitiakitanga

Some resource issues to consider

The purpose of an RPS, as stated in section 59, is achieving integrated management. Kaitiakitanga is, by its nature, an integrated approach to environmental management and can therefore provide the basis for a RPS review.

Kaitiakitanga can provide strong direction on a number of resource issues and processes and inform the structures and processes of a RPS. This is important, as some resource issues are often of greater importance to tangata whenua, than to other parties.

Resource issues which could be considered for a RPS based on kaitiakitanga and tangata whenua values and priorities include:

- *Integrated catchment management* – this is an example of an integrated management process. The RPS could support its implementation, and ensure the inclusion of kaitiakitanga values and processes.

- *Biodiversity* – maintaining and enhancing biodiversity, using an ecology approach, can have much consistency with kaitiakitanga. The RPS can provide a primary role for kaitiakitanga in biodiversity management.
- *Management of marine resources* – the discussion in chapters 12 and 17 shows how an RPS can address issues of managing marine resources. Again, a kaitiakitanga basis is appropriate.
- *Historic heritage* – in practice much of the time and effort of iwi and hapū resource management units is expended on protection of heritage resources. Iwi and hapū can help to develop content for the RPS so that it effectively recognises and provides for protection of Māori historic heritage (such as pa, middens etc). In the coastal environment, councils are required to provide for the ‘identification, assessment, protection and management of areas or sites of significance or special value to Māori’ (policy 2(g)(ii), NZCPS 2010).
- *Iwi and hapū development* – while many of the responses of iwi and hapū under the RMA have been for protection of resources against inappropriate development, those entities have development aspirations of their own. These may differ significantly from mainstream development directions. For instance, papakāinga development differs from an ordinary subdivision. In relation to the coastal environment, councils are required to recognise tangata whenua needs for papakāinga, marae and associated developments and to make appropriate provision for them (policy 6(d), NZCPS 2010). The RPS should provide adequately for such developments.
- *Mātauranga Māori* – the RPS can give direction for the inclusion of Māori knowledge systems within environmental management. In relation to the coastal environment, councils are required to incorporate mātauranga Māori in RPSs, ‘with the consent of tangata whenua and as far as practicable in accordance with tikanga Māori’ (policy 2(c), NZCPS 2010).
- *Treaty settlements* – Treaty settlements include cultural redress provisions which often have RMA implementation requirements. The RPS should ensure that these provisions are enhanced and not frustrated.
- *RMA processes* – a number of RMA processes can be given high level direction from the RPS. These may include section 33 transfers of powers, or guidance for kaitiakitanga expertise in development of section 32 or section 42A reports.

This is not a comprehensive list. Iwi and hapū in different parts of the country will have their own specific resource needs which they will identify.

Input into the review process

An early input into the review process, before the format and content of a second generation RPS has been developed, will help enable Māori to shape second generation RPSs so that they better provide for kaitiakitanga and Māori values.

One way for Māori to achieve this is through preparing an iwi planning document (sometimes referred to as an iwi management plan) outlining the approach of tangata whenua to the resource issues outlined above, and any other issues, and lodging it with councils.

Under s61(2A) of the RMA, the iwi planning document must be taken into account by the regional council when preparing or changing its RPS. The requirement to 'take into account' remains throughout all subsequent processes, including Environment Court appeals, until the RPS becomes operative.

In relation to the coastal environment, councils are required to incorporate references, or material from, iwi resource management plans in RPSs where appropriate and to 'consider providing practical assistance to iwi or hapū which have indicated a wish to develop' such plans (policy 2(e), NZCPS 2010).

While the RMA does not define iwi planning documents, it refers to these plans as 'planning documents recognised by an iwi authority'. Section 2 of the Act defines an iwi authority as 'the authority which represents an iwi and which is recognised by that iwi as having authority to do so'.

Legislation is silent on how iwi planning documents are developed, and they assume a variety of shapes and forms. However, in order for them to be taken into account when preparing or changing RPSs, they must be recognised by an iwi authority, be relevant to the resource management issues of the region, and be lodged with the relevant council.

Māori also have the opportunity to provide early input into second generation RPSs during the consultation process under the First Schedule (clause 3) of the RMA. This requires the council, during the preparation of a proposed RPS, to consult 'the tangata whenua of the area who may be so affected, through iwi authorities'.

In relation to the coastal environment, councils are required to involve iwi authorities or hapū on behalf of tangata whenua in the preparation of RPSs by undertaking effective consultation, 'with such consultation to be early, meaningful and as far as practicable in accordance with tikanga Māori' (policy 2(b), NZCPS 2010).

Māori concerns can again be raised at a later stage during submissions to the council following notification of the proposed RPS.

The Marine and Coastal Area (Takutai Moana) Act 2011 provides for customary marine title groups to prepare planning documents which can be

lodged with regional councils. A regional council is then required to initiate a process to determine whether to alter the RPS in order to 'recognise and provide for' relevant matters in the planning document which apply within the customary marine title area and to 'take into account' matters in the planning document outside that area but where the group exercises kaitiakitanga (section 91).



five

Form and Structure

Form and Structure

The form and structure of the RPS can affect how well the different elements of the document integrate, as well as how easily users can access relevant provisions. How an RPS is structured therefore requires careful consideration.

Analysis and identification of issues

Much of the analytical basis of planning instruments often appears in accompanying documents or in the section 32 assessment which is prepared separately. Some councils have been reluctant to include commentary in the RPS itself, as this material then becomes appealable to the Environment Court, and may make the RPS less succinct.

However, where issues arise directly from an environmental analysis (which, at least in the majority of situations, they should) there is a strong case for at least a summary of that analysis to be included in the RPS itself. This makes the RPS a more robust and transparent document, and also assists in implementation processes.

The methodology by which the analysis is conducted is also important. For instance, what have been the criteria used to identify categories of water quality or significant natural areas or outstanding landscapes? What has been the basis for identifying urban growth pressures or the need for new transport infrastructure? What methodology was used to apply those criteria? How has the issue been assessed against other relevant issues and the principles in part 2 of the RMA?

Keeping it relevant

It can be tempting to draft the RPS to be all things to all people, and to cover numerous resource management issues within the region, even where the council has not done sufficient technical or policy work to provide clear and strong direction on the issues. This can result in high level and waffly provisions, which achieve little in practice.

A good rule of thumb is, if the RPS is not able to provide a clear analytical basis for, and direction on, a specific issue leave it out. Don't fudge the issue with woolly language. This enables RPSs to be more honest about what they can achieve and to demonstrate a clear purpose.

However, all RPSs are required to address the matters of national importance in section 6 of the RMA as described in Chapter 2. Councils therefore need to prioritise resources to undertake robust analysis of these key issues.

Design for the web

New Zealand is fast becoming a web-based society where most official information is sourced from the worldwide web (internet). First generation RPSs were primarily designed as hard-copy documents and this makes many of them difficult to read and understand on the web. In particular, access to specific information often involves loading down large files and scrolling through numerous pages.

To be accessible to the broad spectrum of users, second generation RPSs need to be more 'web-friendly' and drafters should explore ways in which information can be more effectively communicated and accessed via this media. This may mean drafting the RPS in the form of web pages, which interconnect, rather than as PDF documents that can be downloaded.

Sub-regional chapters

The structure of RPSs should help promote their purpose of achieving integrated management of the resources of the whole region. Regional policy statements have traditionally been structured around separate chapters for each resource (such as air, freshwater, coastal environment and biodiversity). This can make achieving integrated management difficult, unless a mechanism is provided to enable the individual resource areas to be considered in an integrated manner.

Such an integrated approach can be achieved through including, within the RPS, chapters structured around sub-regional ecological units such as catchments and their receiving marine waters. These chapters can address more detailed objectives and policies within the framework of region-wide provisions presented earlier in the document. Sub-regional chapters need not cover the entire region, but could focus on spatial areas where there are significant regional issues to resolve.

Such an approach would enable the RPS to be 'grounded' in the different physical characteristics of sub-regional areas.



Figure 6: Tokerau Bay *An integrated approach can be achieved through structuring chapters around sub-regional ecological units such as catchments.*

Linkage between elements

There is often not a clear linear relationship between issues, objectives and policies. This is because a policy may contribute to the achievement of more than one objective and similarly an objective may relate to more than one issue. It is this complex interaction between the different elements of the RPS that can make structuring difficult.

One approach to address this, which has been adopted in the Bay of Plenty proposed RPS (2010), is to link the issues and objectives together under topic headings (air quality, coastal environment, geothermal resources etc). Policies and methods are then contained in a separate chapter, numbered sequentially, but not organised around topics. This avoids duplication where one policy contributes to more than one objective. A cross reference to the relevant objective(s) and methods(s) is shown at the end of each policy. Summary tables then show the linkages between the different elements (see Figure 7). A similar structure has been adopted in the Wellington proposed RPS (2009).

Objectives	Policy titles	Page	Method titles	Implementation	Page
Objective 1 People and the environment are protected from the adverse effects of odours, chemical emissions and particulates	Policy AQ 1A: Discouraging reverse sensitivity associated with odours, chemicals and particulates.	89	Method 1: District plan implementation	City and district councils	131
			Method 23: Provide information about reducing air pollution	Regional council	134
	Policy AQ 2A: Managing adverse effects from the discharge of odours, chemicals and particulates	89	Method 2: Regional plan implementation	Regional council	131
			Method 23: Provide information about reducing air pollution	Regional council	134
			Method 48: Research and monitor the effects of discharges	Regional council	138
	Policy AQ 3A: Managing adverse effects of fine particulate contamination	89	Method 2: Regional plan implementation	Regional council	131
			Method 5: Bylaws to manage unacceptable levels of fine particulate contamination	Regional council, city and district councils	131
			Method 23: Provide information about reducing air pollution	Regional council, city and district councils	134
			Method 37: Integrate management of airsheds	Regional council, city and district councils	137

Figure 7: Table showing relationship between some RPS elements for air quality

Source: Bay of Plenty proposed RPS, 2010, page 20



six

Mapping

Mapping

‘A picture tells a thousand words’. Maps are very useful elements to incorporate into RPSs. They can assist in both strengthening and simplifying the documents. They can communicate complex information in an efficient, transparent and accessible manner, thereby potentially reducing the size and complexity of RPSs, and making them easier to understand and use.

The RMA does not require RPSs to include maps, and the varying issues faced by a region will require varying approaches to mapping. However, maps are valuable tools to identify issues, locate them spatially, and develop appropriate policy responses. Maps are therefore an important component of best practice RPSs.

Government and the courts are increasingly utilising mapping techniques. This recognises the role that maps, in the form of structure plans and spatial plans, can play in achieving integrated environmental management. For example the *Local Government (Auckland Law Reform) Act 2010* introduced a spatial plan requirement for Auckland.

Improving clarity

The use of maps enables the strategic direction contained in the RPS to be clearly articulated. This is particularly the case with such matters as the identification of natural resources and systems to be protected, the identification of future growth areas, and the allocation of resources between different sectors.

Whereas wording in objectives and policies can be open to different legal interpretations, a direct reference to a map included as part of the RPS, can provide considerable clarity as to what is intended where. This helps promote a more consistent approach when the RPS is implemented through regional and district plans, which in turn, provides greater certainty for all parties.

The greater degree of certainty provided by maps means that key issues, such as the location of outstanding natural landscapes and significant natural areas, should not need to be relitigated when regional and district plans are prepared, thereby potentially saving considerable time and resources later down the track.

Maps are also an excellent communication tool. It is often difficult for lay users of RPSs to grasp what the overall effect of numerous objectives and policies is. Maps can illustrate what the RPS is seeking to achieve, where, in a simple and clear manner.

Facilitating integrated management

Mapping facilitates an integrated management response to a number of issues. Maps are well suited to communicating interrelationships and the location of important physical systems that can be difficult to adequately describe in words.

In particular, maps are a useful tool to apply catchment-based management thinking in practice. Such an approach takes catchments and their associated coastal and marine areas as the basic resource management unit. This is based on the understanding that terrestrial and freshwater systems within catchments, and the recipient coastal and marine areas, are integrally linked through physical processes.

Maps, for example, can spatially identify management objectives for freshwater bodies and implications for associated land uses such as through the identification of nutrient management zones. Maps of the coastal marine area can identify areas susceptible to land-sourced impacts thereby driving management responses further up the catchment.

Maps also play a key role in the management of urban areas and can portray details of how the effects of urban development on natural environments (such as rivers that flow through towns) are to be managed.

Connecting science and policy

Mapping provides a useful mechanism to link scientific information with the policy-making environment. Maps attached to RPSs can reflect this and visually present scientific information in a way that can assist with identifying issues, locating them spatially, and developing an appropriate policy response.

Implementing the NZCPS 2010

The NZCPS 2010 contains a number of policies which have a spatial component, and therefore which can best be implemented through incorporating maps in RPSs. These include specific requirements that RPSs:

- Identify areas of the coastal environment where particular activities and forms of subdivision, use and development are inappropriate, or may be inappropriate without a resource consent, designation or plan change process (policy 7(1))
- Identify coastal resources, processes or values that are under threat or at significant risk from adverse cumulative effects (policy 7(2))
- Include provision for aquaculture activities in appropriate places in the coastal environment (policy 8(a))

- Identify areas where preserving natural character of the coastal environment requires objectives, policies and rules (policy 13(1)(d))
- Map or otherwise identify areas where the protection of natural features and natural landscapes requires objectives, policies and rules (policy 15 (d))

Councils are also required to consider where, how and when to provide for future residential, rural residential, settlement, urban development and other activities in the coastal environment when preparing RPSs (policy 7(1)(a)). Maps are a useful tool to identify where such activities will be provided for within the region.



Figure 8: Kawau Bay *The NZCPS contains policies which have a spatial component and therefore which can best be implemented through incorporating maps in RPSs*

Content of maps

Matters that a RPS could usefully show on maps include:

- Outstanding natural features and landscapes.
- Areas of the coast and freshwater bodies with high natural character
- Significant natural areas
- Habitats for threatened species
- Key natural systems (terrestrial, freshwater, coastal and marine)

- The landward boundaries of the coastal environment
- Coastal hazard areas
- Urban limits, for metropolitan areas and for coastal and lakeside settlements
- Nationally and regionally significant infrastructure assets
- Future growth areas
- Areas suitable for countryside living
- Areas suitable for aquaculture
- Rural production areas and areas with high quality soils
- Māori land and areas where recognized customary activities are exercised

Examples of maps

Examples of maps from a range of policy statements are reproduced below:

Urban growth

Maps attached to the Bay of Plenty proposed RPS (2010) show urban limits and future growth zones for coastal settlements. An example of the map for the Waihi Beach and Bowentown areas is reproduced in Figure 9 below. Similar maps are attached to the Auckland RPS (1999).

The Greater Wellington proposed RPS (2009) identifies regional focus areas (see Figure 10). These are areas that are predicted to either come under significant development pressure or provide significant development opportunities for a range of land use activities. They have been identified as areas of critical importance to the achievement of a compact and well-designed regional form. The Council has developed management goals for the areas that are documented in a non-statutory document (the Wellington Regional Strategy). Any application for a resource consent or change to the district plan must pay particular regard to these management goals. This mechanism enables a direct link to be provided a direct link between the non-statutory document and the RPS.

Outstanding natural landscapes

Proposed change 8 to the Auckland RPS (1999) includes a series of maps identifying outstanding natural landscapes throughout the region (see Figure 11 for an example).

Marine areas susceptible to degradation

The Auckland RPS (1999) identifies marine areas susceptible to degradation, to inform catchment management responses (see Figure 12).

Coastal environment

The Waikato proposed RPS (2010) includes maps showing the landward extent of the coastal environment (see Figure 13 for an example).

Significant habitat

The proposed NZCPS (2008) included a map showing Maui's dolphin habitat (see Figure 14).



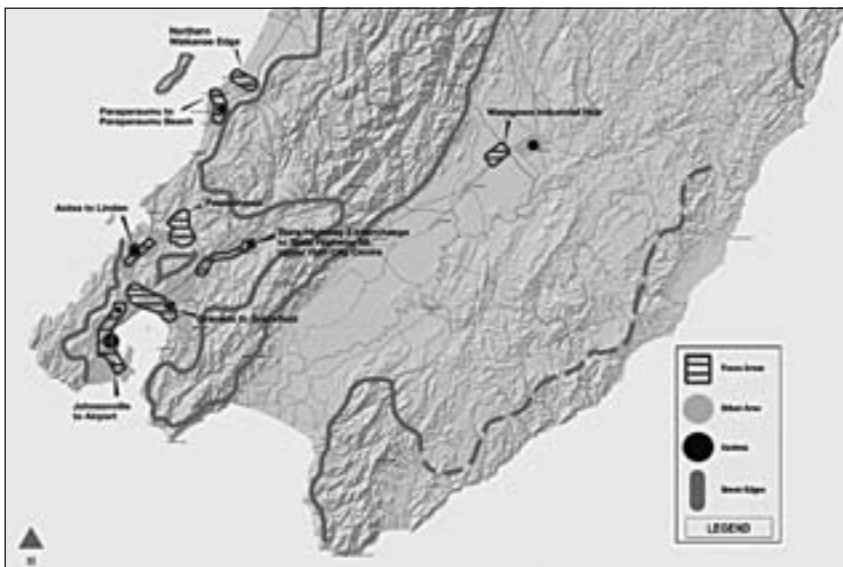


Figure 10: Map identifying regional focus areas – Greater Wellington proposed RPS (2009)

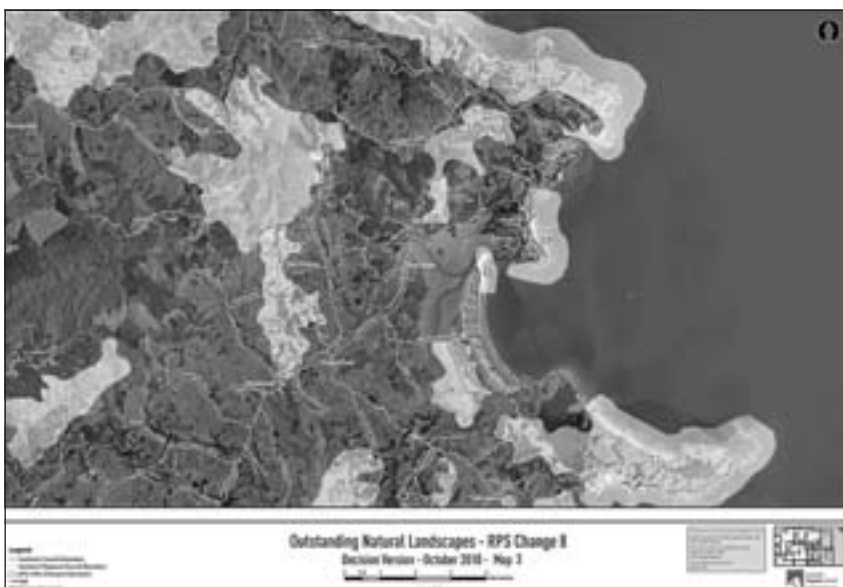


Figure 11: Map identifying regionally outstanding natural landscapes – proposed change 8 to Auckland RPS (1999)

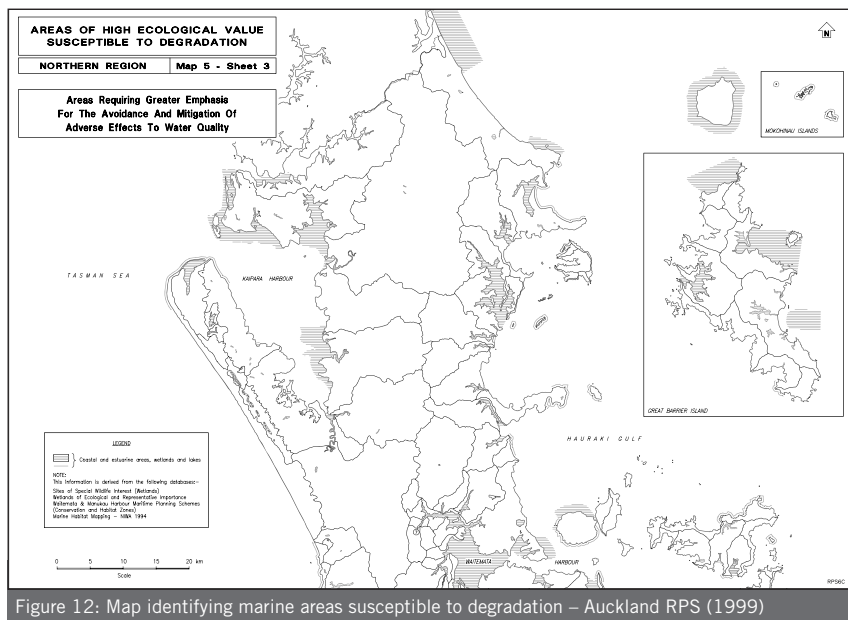


Figure 12: Map identifying marine areas susceptible to degradation – Auckland RPS (1999)



Figure 13: Map identifying the coastal environment – Waikato proposed RPS (2010)

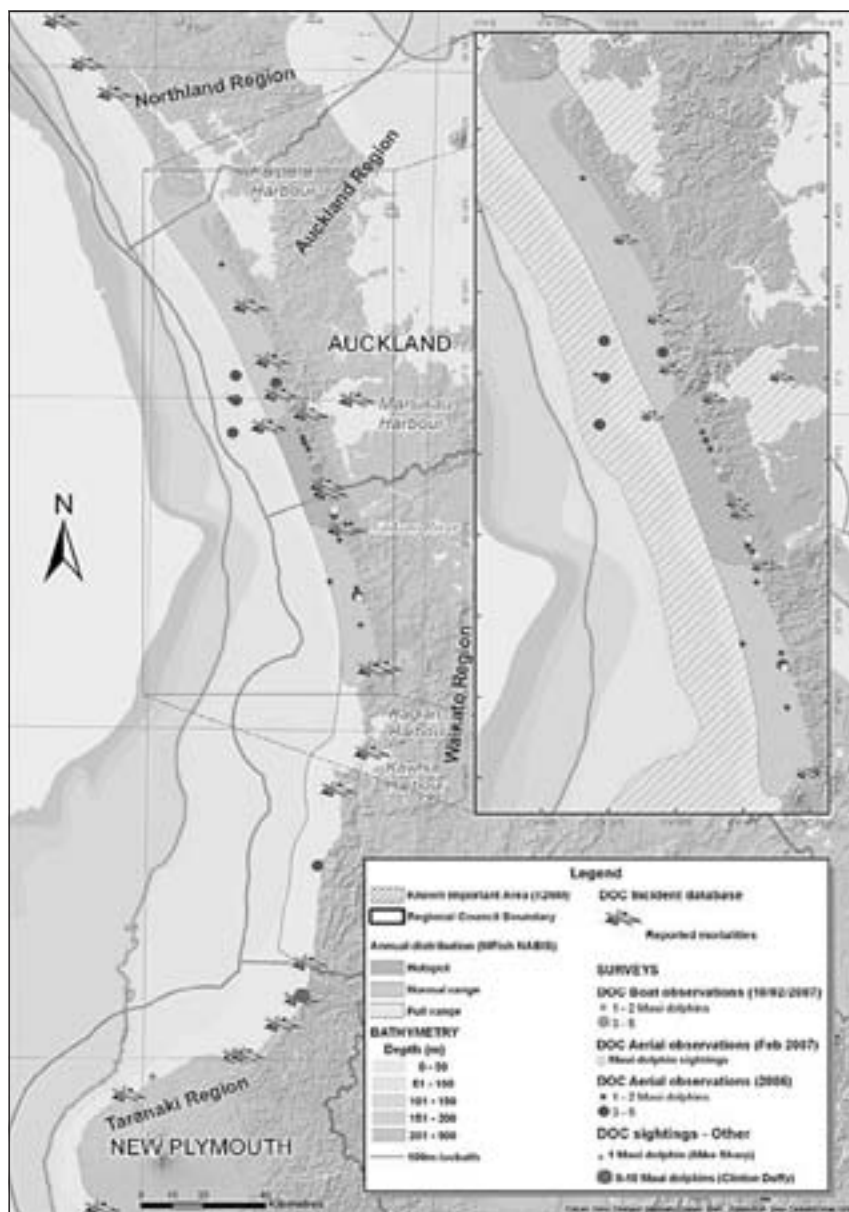


Figure 14: Map identifying Maui's dolphin habitat – proposed NZCPS (2008)



seven

Issues of regional
significance

Issues of regional significance

Regional policy statements are required to state the significant resource issues for the region. An issue is a matter that needs to be addressed to achieve the purpose of the RMA, which is promoting sustainable management.¹¹

What are issues of regional significance?

Issues of regional significance can include matters that fall into one or more of the following categories:

- Are region-wide
- Affect natural or physical resources of regional significance
- Affect more than one territorial authority
- Require regional integration

Identifying issues

Issues of significance can be identified through a combination of technical information, statutory documents and consultation. Technical information can be sourced from the council's own monitoring data, data held by territorial authorities, scientific research and reports, assessments of environmental effects provided for individual projects and data sets held by other agencies such as the Department of Conservation, the Ministry of Fisheries and Crown Research Institutes.

Some issues can only be identified through good monitoring data showing change over time. This is particularly the case in the marine area where environmental change is often not visible without scientific study.

The Mahurangi harbour in the Auckland region is an example of where routine monitoring identified a major ecological issue that had not previously been recognised. The monitoring started in the early 1990s with the intention of providing a pre-urbanised baseline from which future changes could be identified. But the results of the monitoring over a ten year period showed a quite unexpected picture – sediment from the predominantly rural catchment was having a major negative impact on the biodiversity of the harbour. This new information led the Auckland Regional Council to initiate the Mahurangi Harbour Action Plan.



Figure 15: Mahurangi harbour *Monitoring is particularly important in the marine area where environmental change is often not evident without scientific study*

Such examples highlight the importance of regional councils implementing a robust monitoring system that feeds back into RPS preparation and issue identification.

Good monitoring and analysis requires adequate resourcing to carry out those tasks. There is a critical link between good plan preparation methodology and the council's funding processes. It is therefore very important, early on in the plan preparation process, to identify what funds and resources need to be made available through long term council community plan and annual plan processes.

When preparing RPSs, regional councils must take into account iwi planning documents lodged with the council (section 61(2A)), and these may raise new issues as well as identify levels of concern about existing issues.

Consultation with other statutory agencies and the community can also identify levels of concern about identified issues or raise new issues. Some of these may have been identified in statutory documents prepared under other legislation such as conservation strategies prepared under the *Conservation Act 1987* and fisheries plans prepared under the *Fisheries Act 1996*. Others may be identified in long term council community plans prepared under the *Local Government Act 2002*.

Identifying key issues

It is important that the RPS focuses efforts on addressing a manageable number of issues over the life of the plan. This is to ensure that efforts are not dissipated and that resource managers within the region collectively focus on making a significant difference in key areas.

Key issues can be identified based on a combination of the priorities identified in Part 2 of the RMA and national policy statements; the extent to which the issues impact on the region's resources; and the values associated with affected resources.

Focusing on underlying causes

Issue descriptions should not only identify resource management problems, but also their underlying causes. This is so that policies and methods can address causal factors rather than symptoms.

An example of where a policy would address symptoms, rather than causal factors, is in relation to the removal of mangroves. The spread of mangroves is a symptom of poor catchment management and of elevated sediment levels originating from land entering sheltered marine areas. Policies that simply facilitate the removal of mangroves, do not address the cause of their spread, which requires actions to be targeted at reducing sediment loss caused by land activities within the catchment.

Characteristics of a good issue statement

The Quality Planning Website identifies the following characteristics of a good issues statement. It should:¹²

- *Identify an environmental problem (or opportunity for improvement) that the council can address under the RMA*
- *Identify the cause of the problem or scope of the opportunity (where this is known)*
- *Be specific to the region rather than abstract and generalised (even though the issue may also occur elsewhere)*
- *Be succinct (explanations could be used if more detail is essential)*
- *Include what is being affected, how it is being affected, and where*
- *If the issue is intermittent in nature or it relates to a specific timeframe or event, include information related to the circumstances that give rise to the issue, or its duration and frequency (that is 'when')*

Examples of issue descriptions

Examples of issues descriptions from a range of RPSs are reproduced below with commentary:

Land degradation

Existing and potential land degradation, particularly degradation in the quality and life-supporting capacity of soils which arise from land use practices, or activities that reduce their: versatility for a wide range of primary productive uses; productivity; and ability to support a robust or regenerating vegetation cover. Examples of practices include:

- (i) burning and over-grazing in parts of the high country causing land degradation including reduced plant stature and biomass, loss of nutrients and soil organic matter, increased introduced plant and animal pests, increased bare ground and induced erosion;*
- (ii) cultivation of soil to a fine tilth, particularly the free draining light to medium soils of the Canterbury Plains, which predisposes them to wind erosion. (Canterbury RPS, 1998, 27)*

This issue statement both identifies the problem and practices that are causing the problem. It therefore provides a clear direction as to the needed focus of policies and methods.

Soil conservation

The following is a summary of the significant soil conservation and land management issues of the region:

- 1 Erosion of land, especially in hill country and coastal areas, and the contribution of ongoing farming and forestry related activities.*
- 2 Loss of soil structure and productivity under more intensive arable, pastoral, horticultural and forestry systems.*
- 3 Contamination of soils in some areas with hazardous substances.*
- 4 Control of herbicide, pesticide and fertiliser application, particularly in relation to effects on adjacent properties.*
- 5 Loss of highly productive and versatile soils through closer subdivision and settlement, particularly around the urban areas of Whangarei and Kerikeri.*

- 6 *The destruction of vegetation, particularly watershed protection native forest by possums, goats, and deer, and the potential for these animals to act as vectors in the spread of bovine tuberculosis.*
- 7 *The loss of agricultural production and invasion of native vegetation and water bodies by introduced weeds.*
- 8 *Integration of policies on land use activities administered by the Regional and District Councils.*
- 9 *Clearing of vegetation and earthworks, including small scale activities, in erosion prone areas where water catchment values are threatened.* (Northland RPS, 2002, 113)

This issue statement identifies a range of issues that cumulatively impact on the health of soils in the region, as well as many of the causes of the problems. It would be useful, however, to indicate the relative importance of each of the issues identified so that responses could be prioritised.

Air quality

Nuisance and health effects and adverse effects on natural and physical resources and social and cultural values from localised discharges of contaminants into air including:

- (a) *smoke from domestic fires and emissions from motor vehicles.*
- (b) *smoke and gases from industrial processes, for example, from chemical manufacturing plants, spray painting and waste incineration, fish processing factories, piggeries, oxidation ponds, land effluent disposal, fertiliser and freezing works.*
- (c) *chemical spray drift.*
- (d) *dust, for example, from land where vegetation has been removed, quarries, gravel roads, cultivation, and from stockpiles of materials such as coal.*
- (e) *smoke generated in both urban and rural areas by burning of vegetation and waste.* (Canterbury RPS, 1998, 32-33)

This issue statement identifies both the problem and the multiple causes of air pollution.

Biodiversity loss

Waikato has one of the highest rates of biodiversity loss compared with other regions in New Zealand – only 26 per cent of the region remains in native vegetation and

this is fragmented into thousands of patches, mostly in the hill country. As many as 223 indigenous species are threatened with extinction; 68 of these are in the highest threat category. Indigenous forests, scrub and wetlands on the extensive lowlands have been almost completely removed or drained over time. This means that there are few intact coast-to-mountain habitat sequences within the region.

Much of the indigenous forest that remains is reduced in extent and quality, and survives only in small fragments. Plant and animal species threaten the quality of these fragments. There is also evidence that in some districts, the area of indigenous vegetation has declined over the last 10 years.

While the Waikato region is a wetlands stronghold for New Zealand, wetlands cover just one per cent of the total land area. Almost 25 per cent of the region's threatened species rely on wetlands for habitat. These and other freshwater ecosystems are under pressure, particularly through loss of riparian vegetation, reduced water levels, pests, sedimentation, nutrient enrichment and modification. (Waikato RPS working draft, 2010, 19)

This provides an excellent detailed description of the problem but does not describe the underlying causes.

Water pollution

Agricultural discharges of nitrogen and phosphorus are a significant contributor in reducing water quality in the majority of the lakes of the Rotorua district. (Bay of Plenty draft RPS, 2010, 47)

Discharges of stormwater, sewage, sediment and other contaminants to the coast are adversely affecting the health of coastal ecosystems, the suitability of coastal water for recreation and shellfish gathering, mauri and amenity. (Wellington proposed RPS, 2009, 20)

Pollution of rural water bodies (including the coastal waters those water bodies flow into) from contaminants in non-point source discharges and stormwater runoff, including sediment from earthworks and vegetation clearance, wetland drainage, stock effluent, residue from agrichemicals, leachate from contaminated sites and dumped rubbish and dead stock. (Northland RPS, 2002, 86)

These provisions provide succinct descriptions of problems and identify some of their causes.

Water quality can be affected in both a positive and negative way by a wide range of events and activities, including:

- *natural causes, for example, leaching of soluble chemicals in the ground, breakdown of plant and animal material, algal growth, flooding*
- *sewage disposal, either treated or untreated*
- *timber treatment plant discharges*
- *fixed and mobile animal dipping plants*
- *underground storage tanks, for example, petrol*
- *stormwater disposal*
- *industrial spills*
- *industrial waste-water disposal*
- *agricultural chemicals*
- *waste chemical dumps and landfill sites*
- *agricultural waste-water disposal, for example, dairy sheds*
- *agricultural practices, for example, ploughing, constructing and cleaning ditches and drainage channels*
- *animal waste*
- *stock disposal and offal pits*
- *the activities of animals in and near water courses*
- *cooling water discharges*
- *discharges from boats, in coastal and inland waters*
- *climatic conditions, for example, heavy rainfall and cold, which affect biological processes and the ability of land and water to absorb discharges*
- *land use practices, for example, afforestation, urban development, road development and maintenance, harvesting of crops*
- *reductions in water quality*
- *watercourse engineering works. (Southland RPS, 1997, 92)*

This issue description provides a long list of activities which impact on water quality but does not indicate where water quality problems are currently occurring, or likely to occur in the future, and what the prime causes of the water quality problems are. The issue description therefore provides little direction for the development of objectives and policies which can address the issue.



eight

Objectives and policies

Objectives and policies

Regional policy statements must include objectives and policies. These provisions set out what is to be achieved and how. Their wording needs to be clear and precise so that there is no doubt as to what action is required. They need to be based on sound technical analysis so that they are defensible. In order to be effective and drive change, they also need to deal with the hard issues, and make the big decisions on how the key regional issues are to be addressed.

One of the weaknesses of many first generation RPSs was their tendency to leave hard decisions to regional and district plan processes. It is important that second generation RPSs address key decisions up-front and decisively if they are to add significant value to the RMA planning and management framework.

Characteristics of objectives

Objectives state the environmental outcomes that are to be achieved in order to resolve the regional issues identified.¹³ The objective should relate to the issue or issues that are to be resolved. A good linkage between issues and objectives can be achieved through grouping under the common topic headings or the use of linked numbering systems.

Regional policy statements may include overarching high level objectives and more detailed objectives that describe more precisely what is to be achieved. These should clearly express what is to be achieved, where and by when. They should collectively indicate clear environmental bottom lines for the state of key regional resources. Maps can be used to illustrate spatially what outcomes are sought to be achieved, where (see Chapter 6).

The SMART principle provides a useful guide for writing effective objectives. The principle indicates that objectives should have the following characteristics:

Specific – as to what is to be achieved where

Measurable – so it is clear when they have been achieved or not achieved

Achievable – so that the plan does not over-promise and under-deliver

Realistic – so that they are practical and doable with the resources likely to be available

Timed – indicating when the objective, and milestones towards achieving the objective, are to be attained

Examples of objectives

Examples of objectives from a range of RPSs are reproduced below with commentary:

There shall be no increase in controllable nutrient discharges into Lakes Rotomā, Ōkātina, Tarawera, Tikitapu, Rotokakahi, Rerewhakaaitu and Rotomahana beyond 30 June 2008 levels. (Policy 26, Bay of Plenty draft RPS, 2010)

It is clear what needs to be achieved (no increase in discharges beyond June 2008) by when (now). It is specific and measurable. Although the statement is described as a policy in the draft RPS document, it is closer to an objective as it states what is to be achieved rather than how it is to be achieved.

All water bodies with outstanding water quality will be managed to ensure that the water quality is protected at the existing 2000 levels, and the criteria in Table 3 shall be met. (Policy 4.5.12, Waikato RPS Working Draft)

A previous policy clearly identifies which water bodies are currently outstanding and the 2000 water quality levels for each water body. This makes clear the outcome that is being sought (no reduction in water quality parameters), based on when (as measured in 2000). Again, this policy is drafted more as an objective, setting out what is to be achieved rather than how it is to be achieved. Policies could then clearly set out what management approaches will be used to ensure water quality is not reduced.

The protection of historic heritage and outstanding natural features and landscapes from inappropriate subdivision, use and development (Objective 21, Environment Bay of Plenty draft RPS, 2010)

This provides no further guidance than that provided in sections 6(a) and (f) of the RMA and therefore adds no value.

The natural character of the coastal environment is protected from the adverse effects of inappropriate subdivision, use and development (Objective 4, Wellington Proposed RPS, 2009)

This simply restates section 6(a) of the RMA and therefore adds no value. The use of the word ‘inappropriate’ without further clarification introduces a large degree of uncertainty as to whether this objective has been met.

Areas of the coastal environment where natural character has been degraded are restored and rehabilitated (Objective 5, Wellington Proposed RPS, 2009).

This objective is too broad. It fails to provide any guidance as to areas within Wellington's coastal environment where effort should be focused on achieving restoration. It also fails to indicate what type and degree of restoration needs to be achieved, by when. It is also not clear how this objective could be measured.

Public access to and along the coastal marine areas, lakes, and rivers is enhanced (Objective 8, Wellington Proposed RPS, 2009)

This fails to indicate what level of enhancement needs to be achieved, such as the length of additional public access that is sought. It also fails to identify priority areas for enhancing public access. Such an objective would benefit greatly from a map showing areas where existing public access is available and priority areas for the creation of additional public access.

The region's rivers, lakes and wetlands support healthy functioning ecosystems (Objective 13, Wellington Proposed RPS, 2009)

This is a worthy objective but lacks specificity and a time frame. It is not clear what is to be achieved, where and by when.

9.1 To protect areas of significant indigenous vegetation and significant habitats of indigenous fauna.

9.2 To protect the outstanding natural features and landscapes of the West Coast from inappropriate subdivision, use and development.

9.3 To preserve the natural character of the wetlands, lakes and rivers.

9.4 To maintain and enhance public access to the coastal marine area, rivers, lakes and their margins. (West Coast RPS, 2000)

These objectives for habitats and landscapes in the RPS simply restate the provisions of section 6 of the RMA and provide no additional guidance as to what the council is seeking to achieve within the region.

Characteristics of policies

Policies describe how a particular objective, or group of objectives, are to be achieved. They describe what course of action is to be undertaken, where, by when and by whom to achieve the environmental outcomes specified in the objectives.¹⁴

In *Auckland Regional Council v North Shore City Council* the Court of Appeal accepted that an appropriate definition for the term ‘policy’ in the RMA is a ‘course of action’. A policy can include something highly specific and directive. It may appear to be a rule in the ordinary sense of the term, but is not under the RMA, because the policy is not binding on individual citizens. For example, a policy in an RPS can state that urban development must only be permitted in defined urban areas (shown on maps included in the RPS) and that no provision may be made for urban uses in rural areas.¹⁵

The case suggests a broad interpretation to the term ‘policy’ in the RMA should be applied and confirms RPSs can include policies that are specific and directive, with little discretion able to be exercised.

Examples of policies

Examples of policies from a range of RPSs are reproduced below with commentary:

In each Growth Area, district plans shall provide for a target Net Yield of Dwellings per hectare as follows:

- (a) An average Net Yield of 15 Dwellings per hectare of Greenfield Development areas.*
- (b) An average Net Yield of at least 20 Dwellings per hectare within any identified Intensification Area (Policy 41, Bay of Plenty draft RPS, 2010)*

This is a well-written policy that clearly states what level of intensity of development district plans must target.

To control structures in rivers and streams so as to avoid:

- Unduly inhibiting the passage of any indigenous fauna or trout, in relation to migration or other instream movement, essential or important to the life cycle of the fauna.*
- Bank or undesirable bed erosion or aggradation;*

- *Flooding or restricting the drainage of any property without the permission of the owner.*
- *Other significant adverse effects including those on water quality and natural processes (these effects could be a result of a lack of nutrient cycling, natural flushing or flow pulses) or significant impacts on the natural character and other ecological, cultural heritage and landscape values associated with the stream or river. (Northland RPS, 2002,102)*

This identifies what impacts are to be avoided, although some of the wording such as ‘unduly’, ‘undesirable’ and ‘significant’ introduce uncertainty into the precise application of this policy.

Regional plans to include rules for the allocation of an acceptable level of nutrient discharge within Lake Rotorua and other priority catchments (Policy 24, Bay of Plenty draft RPS, 2010)

The use of the word ‘acceptable’ leaves this policy open to wide interpretation. It is not clear what level of nutrient discharge is acceptable. The policy also fails to identify the basis on which nutrient discharges will be allocated to ensure that nutrient discharges are kept within ‘acceptable’ levels.

District and regional plans shall include policies, rules and/or methods that discourage:

- (a) New subdivision and/or development; and*
- (b) Inappropriate use;*
- (c) On land in the coastal environment with high natural character (Policy 3, Wellington Proposed RPS, 2009)*

This policy is very unclear. The use of the word ‘discourage’ rather than an alternative such as ‘prevent’ provides no certainty that development will not occur in areas with high natural character. The policy fails to clearly identify what ‘inappropriate uses’ are. The RPS fails to identify areas of the coastal environment with high natural character, so provides little clarity as to where development should be discouraged. This policy also fails to identify what approaches should be adopted to discourage development and it is unclear how it should be implemented. The policy does little more than restate the provisions of the RMA as interpreted by case law and therefore fails to add value.

- (a) In relation to water quality, natural character and cultural and amenity values, to investigate and provide for water bodies which should be sustained as far as possible in their natural state.*
- (b) Progressively improve degraded water bodies and degraded coastal waters. To achieve this, water quality standards should be established where needed to resolve competing demands for Canterbury's water bodies and coastal waters. Over the next ten years priority for standard setting should be given to the following water resources:*
 - *Ashburton River and Catchment.*
 - *Christchurch-West Melton Groundwater.*
 - *Lake Ellesmere (Te Waihora), Lake Forsyth (Wairewa), and their tributaries and associated groundwater.*
 - *Opihi River and Catchment.*
 - *Waimakariri River and Catchment.*
 - *Partially enclosed degraded coastal waters and coastal waters where there is high water contact recreation. (Canterbury RPS, 1998, 135)*

This policy usefully identifies priority areas for focus in addressing water quality issues although it does not provide a timeframe within which actual improvement in the state of degraded freshwater bodies is to be achieved.

To maintain and where practicable enhance the physical and ecological quality of the coastal environment through:

- (a) Protecting the life-supporting capacity of coastal ecosystems; and*
- (b) Avoiding as far as practicable, or remedying or mitigating the adverse effects, including cumulative effects, of land and water based activities on the coastal marine area through appropriate methods. (Otago RPS, 1998, 111)*

This policy does little more than restate section 5 of the RMA and provides little additional guidance.



nine

Monitoring

Monitoring

Monitoring is a critical part of the resource management system under the RMA, because it is only through monitoring that the effectiveness of the policies and methods in achieving desired objectives can be measured and readjustments made if necessary. Monitoring can also be helpful to check whether objectives are still relevant and to identify new issues for RPS reviews.

Legal requirements

The RPS is required, under section 62(1)(j), to state as a minimum ‘the procedures used to monitor the efficiency and effectiveness of the policies or methods contained in the statement.’ This means that the monitoring system needs to measure the extent to which the policies (and methods) have been effective in achieving the objectives set out in the RPS. The monitoring system also needs to measure how efficient the policies and methods have been.

Councils also have a broader duty to monitor the state of the environment within the region and the exercise of resource consents (section 35(2)).

Design of monitoring system

If at all possible, the monitoring system for the RPS should be designed into the RPS document when it is drafted, so that objectives can be directly linked to environmental outcomes, which can in turn be measured and therefore monitored. Identifying monitoring indicators that can be linked back to each objective, provides a useful check as to whether the objectives are specific enough and can be measured and therefore monitored.

Regional policy statements should include a chapter that sets out in some detail the resource monitoring system that the regional council will implement, what will be measured (indicators), how often and where. The state of the environment will need to be monitored, as well as the extent to which the RPS has been implemented through plans and other actions. This information then can be linked to an evaluation of how well each objective is being met.

Alternatively, monitoring strategies may be developed separate to the RPS, but with a clear linkage to provisions of the RPS. A number of councils have adopted this approach, which is useful where councils are monitoring across a wide range of plans and functions. This broader monitoring approach also assists integration, as it recognises the links between state of the environment, policy and plan, resource consent, compliance and complaint monitoring.

The RPS could usefully indicate what indicators are currently being monitored by the council and what additional monitoring is proposed. The

monitoring system will need to be costed to ensure that budgetary allowance is made in the regional council's long term council community plan and budget.

Examples of monitoring provisions

In the Bay of Plenty draft RPS, 2010, monitoring indicators are directly linked to objectives and anticipated environmental results in tabular form (see Figure 16).

Objective	Anticipated environmental results	Monitoring indicator
20. Enhance the water quality in the lakes of the Rotorua district and other priority catchments	Water quality in priority catchments improves over time	Nitrogen inputs to Lake Rotorua shall not exceed: 482 tonnes in 2019; 435 tonnes in 2029; 435 tonnes in 2250
23. The restoration or rehabilitation of natural communities and habitats in order to increase the survival probabilities of significant indigenous flora, fauna and ecosystems	There is an observed increase in significant natural communities and habitats of indigenous flora, fauna and ecosystems in the region Healthy and fully functioning ecosystems Restoration and rehabilitation of degraded or modified ecosystems, habitats, biological communities or natural landscapes wherever practicable	There is a 20 per cent increase in the areas of indigenous ecosystems and habitats that are legally protected 50 per cent of identified category one significant natural areas on private land are under active management

Figure 16: Example of monitoring provisions in the Bay of Plenty draft RPS 2010

The Canterbury RPS, 1998 identifies the matters to be monitored under each issues heading, such as the indicators shown below for water:

- 1 *The presence and concentrations of contaminants in water bodies and coastal water, and their effects.*
- 2 *Water body flows and levels (including rates of flow, pressures, and for geothermal water, temperatures).*
- 3 *The health of flora and fauna, and availability and quality of mahinga kai in water bodies, coastal water and their surrounds.*
- 4 *Trends in total abstraction of water relative to water availability.*
- 5 *Incidents reported to the Regional Council relating to water quantity and quality.*
- 6 *Trends in compliance with conditions on resource consents and on permitted activities.* Canterbury RPS, 1998, 294.



ten

General checklist for RPSs

General checklist for RPSs

A well-written RPS could be expected to contain the following:

Issues

- Clear description of the key resource management issues that are region-specific
- Identification of issues that will be the focus over the next 10 years
- An indication of the basis on which the issues have been identified and prioritised

Objectives

- Objectives that clearly state what is to be achieved where and by when
- Objectives that are measurable
- Meeting the objectives will resolve the issues identified

Policies

- Policies that clearly state how the objectives are to be achieved
- Policies that clearly indicate what course of action is to be undertaken, where, by when and by whom
- Policies which can be implemented in practice
- Implementing the policies will enable the objectives to be met

Maps

Maps that identify spatially important resources of the region including (where relevant):

- Outstanding natural landscapes
- Areas of the coastal environment and freshwater bodies of high natural character
- Significant natural areas
- Significant natural habitats and connections between them (including terrestrial, freshwater, coastal and marine)

- Marine areas susceptible to impacts from land-based contaminants (sediment, nutrients, heavy metals, other persistent pollutants)
- Urban limits, areas available for future urban growth and areas suitable for rural-residential development
- Areas allocated for key marine uses including aquaculture
- Areas allocated for marine protection (such as Maui's dolphin habitats)
- Māori land and areas where recognised customary activities are exercised

Tangata whenua

- Resource management approaches which incorporate kaitiakitanga
- Recognition and protection of Māori historic heritage
- Provision for iwi and hapū development
- Application of Māori knowledge systems
- Implementation mechanisms for RMA-relevant provisions of Treaty settlements
- Guidance on when kaitiakitanga is to be incorporated into RMA processes

Form and structure

- Clear and concise
- Designed for effective presentation on the web
- Includes effective mechanisms to integrate management across different resources, such as the inclusion of sub-regional chapters
- Shows clear linkages between different components

Monitoring

- A monitoring programme clearly described and linked to the objectives identified
- Identification of what will be measured, where and how often
- Identification of what will be reported when
- Identification of when the effectiveness of the specific policies and methods will be reviewed and adjusted if necessary

PART TWO

ADDRESSING SPECIFIC ISSUES





eleven

Natural resources,
ecosystems and
biodiversity

Natural resources, ecosystems and biodiversity

Issues

Natural resources include our marine and freshwater environments, air, landforms, soils, flora and fauna.

New Zealand has very special flora and fauna that has a particularly high percentage of endemic species. Natural habitats in New Zealand have been significantly modified since first human settlement. About two thirds of New Zealand's original forests have been converted to farmland and there has been extensive modification of wetlands, dunelands, river and lake systems, coastal areas and marine habitats.¹⁶

New Zealand has one of the worst records of biodiversity loss in the world. Almost a third of New Zealand's endemic land and freshwater birds have become extinct and 18 per cent of endemic seabirds. About 800 of New Zealand's known animal, plant and fungi species and 200 subspecies are currently considered threatened.¹⁷

New Zealand's terrestrial species evolved in an almost mammal-free environment so are particularly vulnerable to introduced species of mammal such as rats, cats, ferrets and stoats. The main threats to terrestrial biodiversity are habitat destruction and the spread of these pests and of weeds.

The main threats to freshwater biodiversity are pollutants, sedimentation, loss of riparian vegetation, water abstraction, physical barriers, exotic species and fishing activity (see the EDS Guide *Managing Freshwater*).

Marine biodiversity is threatened by fishing activity (including damage to benthic habitats from dredging and trawling), pollution, sedimentation, alteration of physical habitat and invasions of exotic species (see the EDS Guide *Managing the Marine Environment*).

The healthiest ecosystems are those that have been least modified by human activity. Healthy ecosystems are critical in supporting New Zealand's unique indigenous flora and fauna, including the hundreds of species that are currently threatened with extinction. Many ecosystems throughout the country have been heavily modified, are in a poor state, and require restoration.

Regional councils need to develop a good understanding of the terrestrial, freshwater, coastal and marine ecological systems within their region and the connections between them. These systems can collectively be thought of as the 'ecological backbone' that underpins collective well-being of the region.

A key role of the RPS is to identify, protect and promote the restoration of key elements of important natural resources and regional ecosystems, while still enabling development within the region.

RMA provisions

Section 6(c) of the RMA requires that that the RPS recognise and provide for the protection of significant indigenous vegetation and significant habitats of indigenous fauna.

The NZCPS 2010 also contains provisions for the protection of biodiversity within the coastal environment which need to be given effect to in RPSs (see Figure 17). These require councils to avoid adverse effects on threatened species, ecosystems and vegetation types, amongst other things. In a footnote to this policy, the NZCPS specifically refers to Maui's dolphin, Hector's dolphin, New Zealand fairy tern and Southern New Zealand dotterel as examples of taxa listed as threatened and therefore in need of protection from adverse effects.

To protect indigenous biological diversity in the coastal environment:

- (a) avoid adverse effects of activities on:
 - (i) indigenous taxa that are listed as threatened or at risk in the New Zealand Threat Classification System lists;
 - (ii) taxa that are listed by the International Union for Conservation of Nature and Natural Resources as threatened;
 - (iii) indigenous ecosystems and vegetation types that are threatened in the coastal environment, or are naturally rare;
 - (iv) habitats of indigenous species where the species are at the limit of their natural range, or are naturally rare;
 - (v) areas containing nationally significant examples of indigenous community types; and
 - (vi) areas set aside for full or partial protection of indigenous biological diversity under other legislation; and
- (b) avoid significant adverse effects and avoid, remedy or mitigate other adverse effects of activities on:
 - (i) areas of predominantly indigenous vegetation in the coastal environment;
 - (ii) habitats in the coastal environment that are important during the vulnerable life stages of indigenous species;
 - (iii) indigenous ecosystems and habitats that are only found in the coastal environment and are particularly vulnerable to modification, including estuaries, lagoons, coastal wetlands, dunelands, intertidal zones, rocky reef systems, eelgrass and saltmarsh;
 - (iv) habitats of indigenous species in the coastal environment that are important for recreational, commercial, traditional or cultural purposes;
 - (v) habitats, including areas and routes, important to migratory species; and
 - (vi) ecological corridors, and areas important for linking or maintaining biological values identified under this policy.

Figure 17: NZCPS Policy 11 Indigenous biological diversity

Content of RPS

The RPS would be expected to:

- Spatially identify areas of indigenous vegetation and significant habitats that are regionally significant. This should include terrestrial, freshwater, coastal and marine habitats.
- Spatially identify the location of indigenous species, ecosystems and vegetation types within the coastal environment (which includes the territorial sea) which require protection to give effect to the NZCPS 2010
- Identify the main threats to the ecological health of these species and areas and how they will be managed
- Identify priority areas for restoration
- Identify the respective roles to be played by the local authorities within the region in managing biodiversity
- Include a monitoring programme to identify the health and extent of areas of indigenous vegetation, significant habitats, indigenous ecosystems and threatened species and changes to their status



twelve

Hector's and
Maui's dolphins

Hector's and Maui's dolphins

Issues

A significant conservation issue, which many regional councils will need to grapple with in their RPSs, is the protection of the critically endangered Hector's and Maui's dolphins. These small coastal dolphins, which grow up to only 1.5 metres long, are endemic to New Zealand. They are amongst the rarest and smallest marine dolphin species in the world.

Hector's dolphins (*Cephalorhynchus hectori*) are found only around the South Island. Maui's dolphins (*Cephalorhynchus hectori maui*) are found only along the west coast of the North Island. They are a genetically distinct subspecies that has been isolated from the Hector's dolphin for several thousand years. Both dolphin species have a distinctive rounded dorsal fin and blunt beak (see Figure 12). They differ slightly in beak size, length and genital patch coloration.

The Hector's dolphin is classified as 'nationally endangered' by the Department of Conservation and 'endangered' by the IUCN. In 2007 the population was estimated to be only around 7,270 individuals, about a third of the estimated 1970 population.¹⁸ The Maui's dolphin population is in a much more critical situation, with a 2004 study estimating the population to be comprised of just 111 individuals, of which fewer than 30 are likely to be breeding females.¹⁹ The dolphin is ranked as 'nationally critical' by the Department of Conservation and 'critically endangered' by the IUCN.

Hector's and Maui's dolphins have a very low reproductive rate. They live only up to around 20 years of age. Females start giving birth at between seven and nine years of age and only have one calf every two to three years.²⁰ This means that the dolphins are very slow to recover from depleted population levels, and that even a small number of deaths caused by human interaction, can have a significant impact on population levels.

Hector's dolphins are found right around the South Island except for Fiordland (see Figure 19). Particularly dense concentrations are found around Banks Peninsula, Porpoise Bay on the Catlins coast, Te Waewae Bay in Southland, along the west coast, and between Cloudy and Clifford Bays in Marlborough. These areas are particularly important for the future survival of the species and need to be carefully managed.

Hector's dolphin habitat coincides with the coastal marine area jurisdictions of all the regional councils in the South Island (with core areas in brackets):

- Tasman District Council

- Nelson City Council
- Marlborough District Council (Cloudy to Clifford Bays)
- Environment Canterbury (Banks Peninsula)
- Otago Regional Council
- Southland Regional Council (Porpoise Bay and Te Waewae Bay)
- West Coast Regional Council (West Coast)

Maui's dolphins have been sighted along the west coast of the North Island, between Maunganui Bluff in the north, to just south of New Plymouth. They are most commonly found in the area of the coast between Manukau Harbour and Port Waikato. Maui's dolphins have also been recorded within the Manukau Harbour and may well be present in other west coast harbours.

This Maui's dolphin habitat coincides with the coastal marine area jurisdictions of the *Northland Regional Council*, *Auckland Regional Council* and *Environment Waikato*. A sighting of Maui's dolphins has also recently been made within the coastal marine area managed by the *Taranaki Regional Council*.

Hector's and Maui's dolphins enter harbours and bays during the summer breeding season and are often found close inshore. Some move further offshore in the winter months and can be found in water up to 80 metres deep.²¹ The coastal marine areas inhabited by the dolphins are affected by many human activities, some of which can have significant negative impacts on these endangered species. Many of these activities are managed by regional councils under the RMA

Fishing activity

Fishing-related mortality has resulted in serious declines in abundance, population fragmentation, and reduced genetic diversity within populations.²² Where fishing activity is undertaken in areas inhabited by the dolphins, they can become entangled in fishing gear. This prevents the dolphins from reaching the surface to breathe and consequently they asphyxiate through breath-holding or drown. The most significant threat to the dolphins is from microfilament set nets used by inshore commercial and recreational fishers which the dolphins often fail to detect. Hector's and Maui's dolphins can also become entangled in trawl nets, craypot lines and drift nets, although fatalities caused by these methods are less common.



Figure 18: Hector's and Maui's dolphin distribution map

Bulk fishing methods such as trawling, which extract large quantities of fish from the marine ecosystem, may also affect the location and abundance of food supply for the dolphins. Hector's and Maui's dolphins eat small surface and benthic fish such as red cod, kahawai and yellow mullet, as well as squid and bottom dwelling invertebrates.

Calculations of the potential biological removal level for Maui's dolphins (that is the maximum human-induced mortality level the population can sustain without declining) suggest they can afford no more than one human-induced death every 6.4 years. Effectively this means that human impacts need to be reduced to zero.²³

Restrictions on fishing activity have been put in place to protect Hector's and Maui's dolphins, but do not extend to all areas where the dolphins may be present (see Appendix 1).

The actual levels of fishing-related mortality are difficult to estimate accurately, because of low independent observer coverage, lack of monitoring of recreational fishing activities, and poor incentives for the voluntary reporting of incidents. Most of the reports of dolphin deaths to the Department of Conservation come from public sightings. They are therefore biased towards heavily used coastal areas and represent an underestimate of total deaths.

Aquaculture

Marine farming can have several potential impacts on Hector's and Maui's dolphins including:²⁴

- Occupying dolphin habitat, resulting in their displacement from the area, which in turn can fragment dolphin populations
- Entanglement in marine farming equipment
- Noise disturbance from construction and ongoing vessel movements
- Ingestion of debris lost from marine farms
- A reduction in the dolphin's food supply through changes to the marine ecosystem

The potential of marine farms to displace dolphins is a particular concern if the area occupied by the farm is a 'high-use' dolphin area or is important for breeding, calving and/or nursing activities. Where numerous marine farms are located along a stretch of coastline, this may fragment dolphin habitat, and result in small genetically isolated populations. The movement of individuals between populations is thought to be very small, with most individuals having

a range over less than 60 kilometres, and returning to the same locations.²⁵ Anything that further fragments populations and reduces interactions between them increases the threat of additional reductions in genetic diversity.

Given current government policy to significantly expand the extent of aquaculture in the coastal marine area, it is important that RPSs address potential conflicts with Hector's and Maui's dolphin habitats, and at the very least identify areas where aquaculture will not be appropriate ('aquaculture exclusion areas').

Vessels

Marine mammal tourism has been a growth industry in New Zealand over the past decade. Hector's and Maui's dolphins are attracted to boats travelling at a slow speed so have proved popular with tourists. Also, as the dolphins are endemic to New Zealand, international tourists can have an experience unavailable anywhere else in the world. Recreational vessels also interact with the dolphins from time to time.

Research has shown that tourism boats engaged in dolphin viewing or swimming activities do result in a change in dolphins behavior. But it is not known how significant this change is, in terms of negatively impacting on the sustainability of dolphin populations. Potential impacts include disrupted feeding and resting activities, reduced breeding success, and displacement from heavily touristed areas.²⁶



Figure 19: Marine mammal tourism in Akaroa harbour *Marine mammal tourism can change dolphin behavior but the impacts are not well understood*

Vessel engines can result in considerable underwater noise. Dolphin's rely heavily on sound to understand their environment, to communicate and to catch prey. They utilise a complex, high frequency, sonar system and may be especially vulnerable to noise disturbance. However, the impact of noise on Hector's and Maui's dolphins has not been studied and is not well understood.

Boat strike can also be a problem with fast moving vessels, particularly for mothers and calves. In the Canterbury region, there was one confirmed Hector's dolphin death from boat strike in 1999, with two additional deaths possibly due to the same cause.²⁷

Pollution

Because Hector's and Maui's dolphins live in shallow coastal areas they are particularly susceptible to the impacts of marine pollution from land-based sources.

The tissue of Hector's dolphins has been found to contain particularly high levels of organochlorines such as DDT, PCBS and dioxins. The levels of DDT found are one of the highest of any cetaceans in the world. DDT was once a common agricultural chemical, but is no longer able to be used in New Zealand, so these levels should drop over time. Organochlorines can reduce the reproductive success of marine mammals. They may also suppress the immune system, making the animals more susceptible to infection and disease.²⁸

Another form of pollution which can impact on the dolphins is plastic debris entering the marine area. Dolphins can become entangled in the plastic, become wounded, and have difficulty catching food or avoiding predators.

Oil spills, potentially resulting from the extraction and transportation of oil, is also a potential threat for the dolphins. Polycyclic aromatic hydrocarbons are a powerful carcinogen and have been linked to cancers in some marine mammals.²⁹

Coastal activities

A range of coastal activities may individually and/or cumulatively impact on dolphins, such as mining, dredging, sediment disposal, construction of structures and renewable energy generation. These activities can result in underwater noise, the suspension of sediment in the water column, and disturbance of benthic communities. Seismic surveys may result in temporary or permanent hearing loss and behavioural disturbance. The impacts of these activities are not well understood. Such activities can also potentially displace dolphins from marine areas and affect behavior, food supply and breeding success.

RMA provisions

The RMA has several provisions that are particularly relevant to the role of RPSs in protecting Hector's and Maui's dolphins. Section 5 of the RMA requires regional councils, when preparing their RPSs, to:

- Sustain the potential of natural resources [including dolphins] to meet the reasonably foreseeable needs of future generations
- Safeguard the life-supporting capacity of seawater and marine ecosystems [including dolphins]
- Avoid, remedy or mitigate any adverse effects on the environment [which includes dolphins and their habitat].

Section 6(c) requires regional councils, when preparing their RPSs, to recognise and provide for the protection of 'significant habitats of indigenous fauna' that includes *protecting significant habitats for Hector's and Maui's dolphins* where these occur within the region.

Section 7(d) requires regional councils, when preparing their RPSs, to have particular regard to the intrinsic values of ecosystems. Ecosystems consist of 'a biological community of interacting organisms and their physical environment'.³⁰ Hector's and Maui's dolphins are an integral part of coastal marine ecosystems.

Section 7(g) requires regional councils, when preparing their RPSs, to have particular regard to any finite characteristics of natural resources that includes species such as the Hector's and Maui's dolphins at risk from extinction.

In addition, the functions for regional councils listed under section 30 of the RMA, include the following, that encompass managing a range of impacts on Hector's and Maui's dolphins:

- The establishment, implementation, and review of objectives, policies and methods to achieve integrated management of the natural and physical resources of the region – that includes integrated management of the threats to Hector's and Maui's dolphins (section 30(1)(a))
- The control of the use of land for the purpose of the maintenance and enhancement of the quality of coastal water (section 30(1)(c)(ii)) and the maintenance and enhancement of ecosystems in coastal water (iii) – that includes the control of catchment run-off that may negatively impact on dolphins

- The control of the occupation of seabed [such as for aquaculture] and extraction of natural material from the seabed [mining] (section 30(1)(d)(ii)) – activities that may disturb or displace dolphins
- Discharges of contaminants into coastal seawater (section 30(1)(f)) – that includes contaminants that may negatively impact on dolphins
- Activities in relation to the surface of the coastal marine area [including vessels, fishing activity and aquaculture that may impact on dolphins] (section 30(1)(d)(vii))
- The establishment, implementation and review of objectives, policies and methods for maintaining indigenous biological diversity (section 30(1)(ga)) that includes maintaining Hector's and Maui's dolphin populations.

Provisions of the NZCPS 2010 are also relevant to regional council functions in protecting the dolphins. Policy 11 requires councils to protect indigenous biological diversity in the coastal environment by avoiding adverse effects of activities on indigenous taxa that are listed as threatened or at risk in the New Zealand Threat Classification System lists. Hector's and Maui's dolphins are listed as threatened and therefore adverse effects on them must be avoided. Regional policy statements must give effect to this policy.

There are provisions within the RMA and the Fisheries Act 1996 that address the interaction between the two pieces of legislation when it comes to managing the impacts of fishing on Hector's and Maui's dolphins.

Section 30(3) of the RMA states:

However, a regional council and the Minister of Conservation must not perform the functions specific in subsection (1)(d)(i), (ii) or (vii) to control the harvesting or enhancement of aquatic organisms for the purpose of conserving, using enhancing, or developing any fisheries resources controlled under the Fisheries Act 1996.

This includes controlling the seabed and associated benthic habitats, the occupation of space on the seabed and activities on the surface of water. These functions cannot be undertaken if they control fishing activity in respect of fisheries resources controlled under the Fisheries Act.

The RMA defines 'fisheries resources' as having the same meaning as in section 2(1) of the Fisheries Act 1996 which is 'any one or more stocks or species of fish, aquatic life, or seaweed'. 'Aquatic life' is defined as meaning 'any

species of plant or animal life that, at any stage in its life history, must inhabit water, whether living or dead' and includes seabirds.

Although Hector's and Maui's dolphins fall within the wide definition of 'fisheries resources' under the Fisheries Act (that includes all forms of marine life), they are arguably not 'controlled' under that legislation as they cannot be targeted by fishing activity (see discussion of Marine Mammal Protection Act in Appendix 1). As a result, regional councils can potentially manage the adverse effects of fishing activity on the dolphins. Amendments to section 30(3) of the RMA are proposed in the Aquaculture Legislation Amendment Bill (No 3) 2010.

Section 11(2)(a) of the Fisheries Act 1996 requires the Minister of Fisheries to have regard to any provision of any RPS under the RMA when setting or varying any sustainability measure. Sustainability measures include the setting of a catch limit for a fish stock, controlling fishing methods, and controlling areas where fishing may take place. The provisions of the RPS can therefore have influence over decisions under the Fisheries Act that in turn may impact on Hector's and Maui's dolphins. The RPS can address the threats to Hector's and Maui's dolphins, including the impacts of fishing activity, in an integrated manner.

Content of RPSs

A summary of the potential threats to Hector's and Maui's dolphins, and how they might be addressed under the RMA, is shown in Figure 20. This indicates that regional councils will need to carefully manage activities within dolphin habitat including aquaculture, exploration and mining activity, marine energy generation projects, other coastal development, vessel movements and fishing activity. Catchment run-off is also a potential threat which needs to be addressed.

In those regions where Hector's or Maui's dolphins are present, the RPS should provide a strategic overview of the cumulative threats to Hector's or Maui's dolphin within the region and identify how those threats will be effectively managed. In order to achieve this it could be expected that RPSs would:

- Spatially identify areas of Hector's or Maui's dolphin habitat within the region
- Spatially indicate the location of marine mammal sanctuaries within the region
- Identify key threats to the dolphins and how they will be addressed
- Spatially identify areas where fishing methods, such as set netting, should be excluded.

- Spatially identify areas where aquaculture should be excluded
- Spatially identify areas where other coastal activities should be strictly controlled or excluded (such as dredging, dumping, marine energy generation, structures etc.)
- Identify any areas where vessel movements might need to be controlled
- Spatially identify priority catchments for reducing pollutants entering the marine area

Threat	Consequence	Possible Measures under the RMA
Fishing activity	Entanglement in fishing gear Boat strike Noise and disturbance Displacement from areas Depletion of prey species	Identify the need to exclude fishing activity, likely to result in dolphin entanglement, from dolphin habitat
Aquaculture	Entanglement Displacement from areas Boat strike Noise and disturbance	Restrict the size of, or exclude, aquaculture from important dolphin habitat
Catchment run-off	Depletion of prey species Build up of pollutants in tissue Entanglement in plastic debris	Strictly control discharges in catchments draining into important dolphin habitat
Vessels	Boat strike Noise and Disturbance Displacement from areas	Restrict vessel movement in areas frequented by dolphins Reduce allowable vessel speed in areas frequented by dolphins
Exploration and mining	Noise and disturbance Increased pollution threat Depletion of prey species	Exclude or control exploration and mining activities from important dolphin habitat
Coastal development	Displacement from areas Noise and disturbance Depletion of prey species	Strictly control coastal development in important dolphin habitat

Figure 20: Summary of threats to Hector's and Maui's dolphins and RMA responses



thirteen

Growth management

Growth management

Issues

The pattern, location and design of urban development have a major impact on the natural resources of a region. Urban development can result in the loss of natural habitat, changes in air quality, increased run-off, and increased sedimentation and pollution of freshwater bodies and the marine area.

The location of urban development also has major implications for infrastructure provision, which in itself can have significant resource management implications. Increased traffic can result in a greater volume of heavy metals and persistent pollutants entering the marine area, air pollution, noise and increased emissions of greenhouse gases. Overloaded wastewater systems can result in sewage overflows entering freshwater and marine areas.

This means that providing direction for the management of urban development is an important role for the RPS in areas where there is population growth or demand for additional holiday homes.

RMA provisions

The RPS is required to provide policies and methods to achieve the integrated management of natural and physical resources of the whole region. Such integrated management will usually require management of urban growth and development. In addition, regional councils have the function of 'the strategic integration of infrastructure with land use through objectives, policies and methods' (section 30(1)(gb)) and this requires a strategic approach to be taken to growth management.

When preparing RPSs, policy 7(1) of the NZCPS 2010 requires councils to consider where, how and when to provide for future residential and rural residential settlement and urban development, as well as other activities in the coastal environment.

Content of RPS

Where there is likely to be urban growth within a region, a RPS could be expected to include a clear growth management framework, shown spatially on maps. A growth management framework will typically include the spatial identification of:

- The *urban footprint* and urban limits for settlements, including metropolitan, rural, coastal and lakeside settlements

- Areas where *future urban growth* may occur
- *Additional or upgraded infrastructure* likely to be needed to support urban growth including key transport routes and modes and regional water and wastewater facilities.
- Areas subject to *natural hazards* where growth would be inappropriate
- Areas within which *countryside living* will be contained
- *Rural production* areas that will be retained for rural production activities
- *Landscape protection areas* – including outstanding natural features and landscapes, areas of the coast and freshwater bodies with high natural character, significant natural areas, historic landscapes and culturally significant areas

Such a framework will often be based on a non-statutory strategy that has been developed for the region, or districts within it, such as growth management and coastal management strategies.

A good example of such an approach can be seen in the Bay of Plenty Proposed RPS, 2010, that incorporates the region's growth management strategy. This RPS contains a series of maps that show urban limits for settlements in the Western Bay of Plenty and future growth areas (as shown in Figure 9). The maps are accompanied by a schedule that indicates the timing for release of new growth areas and for the release of business land.



fourteen

Landscape protection

Landscape protection

Issues

New Zealand has a wide diversity of landscapes that have been created as a result of the country's varied geomorphological history and subsequent human modification. New Zealand's location across two tectonic plates has resulted in a long history of volcanic activity and tectonic movements. These have left numerous volcanic features and mountain ranges dominating the landscape. The rising of sea levels after the last ice age flooded many river plains, glacial valleys and volcanic features creating spectacular harbours, fiords and islands along the coastline. Rivers draining major geological features, such as the Southern Alps and volcanic plateau, have carved out extensive river valleys and braided systems and created numerous lakes and wetlands.

Natural landscapes are highly valued by New Zealanders, particularly those that show high relief (mountains and hills), water (lakes, rivers and/or the sea), tall indigenous forest and a lack of human structures such as houses. Natural landscapes are also highly valued by tangata whenua as result of lengthy historical connections to specific locations. Natural landscapes have high economic value and underpin New Zealand's tourism industry as well as the country's 'clean and green' brand.

Virtually all landscapes in New Zealand have been modified by human activities. The greatest landscape change, by size of area affected, is the replacement of indigenous forests with pastoral farming. More recent landscape changes have been the result of exotic plantation forestry, urban development encroaching into rural areas particularly along the coast and lakesides, and the expansion of intensive farming systems based on irrigation into previously arid areas such as the Mackenzie Basin. Such activities can result in the degradation of natural landscapes that are highly valued.

RMA provisions

Natural landscapes

Section 6(b) of the RMA requires the RPS to recognise and provide for the protection of outstanding natural features and landscapes from inappropriate subdivision, use and development. A natural landscape will be 'outstanding' if it is conspicuous, eminent or remarkable within the context of the region.³¹ Case law has made it clear that in order to recognise and provide for important landscapes it is necessary to first identify them.³²

Section 79(c) requires the RPS to pay particular regard to 'the maintenance and enhancement of amenity values'. 'Amenity values' are defined in section 2 of the RMA as meaning:

... those natural or physical qualities and characteristics of an area that contribute to people's appreciation of its pleasantness, aesthetic coherence, and cultural and recreational attributes.

Councils are therefore also required to focus on the management of landscapes that may not be outstanding but still make a significant contribution to the amenity of the region

The NZCPS 2010 contains further direction on the protection of coastal landscapes. Policy 15 requires councils to *avoid adverse effects* on outstanding natural coastal landscapes and to *avoid significant adverse effects* on other coastal natural landscapes. It also requires landscapes which need protection to be mapped or otherwise identified in RPSs (see Figure 21).

Policy 18 requires the provision of public open space within and adjacent to the coastal marine area, but requires councils to ensure that the location and treatment of public open space is compatible with the natural landscapes of the coastal environment.

Heritage and cultural landscapes

Section 6(f) of the RMA provides for the protection of historic heritage. This is defined in the Act to include historic areas and sites of significance to Māori and surroundings associated with them, amongst other things. It is uncertain whether this includes heritage landscapes as the Environment Court has noted that using the term heritage landscape 'may be dangerous under the RMA' because the term landscape is only referred to in section 6(b) of the RMA.³³ In addition the Environment Court has stated that the 'concept of a landscape includes heritage values, so there is a danger of double-counting'.³⁴

The NZCPS 2010 contains a number of policies concerning landscapes, areas and sites of value to Māori. Policy 2 requires recognition of the importance of Māori cultural and heritage values through such methods as historic heritage, landscape and cultural impact assessments. It also requires provision for the identification, assessment, protection and management of areas or sites of significance or special value to Māori, for example coastal pā or fishing villages. However this policy does not go as far as to require protection of landscapes of significance to Māori, and is directed rather at areas and sites.

Policy 15 requires the identification and assessment of natural landscapes having regard to cultural and spiritual values for tangata whenua including their expression as cultural landscapes. This provision appears to recognise that the

presence of a 'cultural landscape' according to tikanga Māori is one factor to be considered in determining whether a natural landscape is worthy of protection in RPSs.

The term 'cultural landscape' is also used in Policy 14 which promotes restoration or rehabilitation of the natural character of the coastal environment including by restoring cultural landscape features.

To protect the natural features and natural landscapes (including seascapes) of the coastal environment from inappropriate subdivision, use, and development:

- a. avoid adverse effects of activities on outstanding natural features and outstanding natural landscapes in the coastal environment; and
- b. avoid significant adverse effects and avoid, remedy, or mitigate other adverse effects of activities on other natural features and natural landscapes in the coastal environment; including by:
- c. identifying and assessing the natural features and natural landscapes of the coastal environment of the region or district, at minimum by land typing, soil characterisation and landscape characterisation and having regard to:
 - i. natural science factors, including geological, topographical, ecological and dynamic components;
 - ii. the presence of water including in seas, lakes, rivers and streams;
 - iii. legibility or expressiveness – how obviously the feature or landscape demonstrates its formative processes;
 - iv. aesthetic values including memorability and naturalness;
 - v. vegetation (native and exotic);
 - vi. transient values, including presence of wildlife or other values at certain times of the day or year;
 - vii. whether the values are shared and recognised;
 - viii. cultural and spiritual values for tangata whenua, identified by working, as far as practicable, in accordance with tikanga Māori; including their expression as cultural landscapes and features;
 - ix. historical and heritage associations; and
 - x. wild or scenic values;
- d. ensuring that regional policy statements, and plans, map or otherwise identify areas where the protection of natural features and natural landscapes requires objectives, policies and rules; and
- e. including the objectives, policies and rules required by (d) in plans.

Figure 21: NZCPS Policy 15 Natural features and natural landscapes

Content of RPS

Regional policy statements should:

- Spatially identify the location of outstanding natural landscapes and amenity landscapes of regional significance as well as natural coastal landscapes requiring protection to avoid significant adverse effects
- Describe the important values of identified landscapes which need to be protected
- Clearly identify what kind of development is ‘inappropriate’ within these landscapes (that may differ for each landscape or landscape group)
- Describe a monitoring programme that will be undertaken to measure the extent to which important values of regional landscapes are protected. This could, for example, include measuring the level of subdivision (subdivision consents) and development (building permits) occurring within important regional natural landscapes.

A good example of landscape protection is shown in the Auckland RPS (1999) (see Figure 22)

Regional policy statements could also usefully describe what methodology should be applied to the identification of outstanding natural and amenity landscapes at a district level.

1. Subdivision, use and development of land and related natural and physical resources shall be controlled so that in areas identified in Map Series 2 and 3 [includes spatial identification of regionally significant landscapes]:
 - (i) the quality of outstanding landscapes (landscape rating 6 and 7) is protected by avoiding adverse effects on the character, aesthetic value and integrity of the landscape unit as a whole;
 - (ii) outstanding landscapes with a sensitivity rating of 6 or 7 are protected by avoiding subdivision, use and development which cannot be visually accommodated within the landscape without adversely affecting the character, aesthetic value and integrity of the landscape unit as a whole;
 - (iii) the quality of regionally significant landscapes (landscape rating 5) is protected by avoiding adverse effects on the elements, features and patterns which contribute to the quality of the landscape unit;
 - (iv) regionally significant landscapes with a sensitivity rating of 5 are protected by ensuring that any subdivision, use and development can be visually accommodated within the landscape without adversely affecting the elements, features and patterns which contribute to the quality of the landscape unit.
2. In those rural areas not rated as being outstanding or regionally significant landscapes and in urban areas, the elements, features and patterns which contribute to the character and quality of the landscape and to its amenity value, or which help to accommodate the visual effects of subdivision, use and development, shall be protected by avoiding, remedying, or mitigating any adverse effects on them.
3. Subject to Policy 6.4.19-1 above, subdivision, use and development on regionally significant ridgelines shall be controlled so that there are no significant adverse effects, including cumulative effects, on the landscape quality and integrity of the ridgelines ...

Figure 22: Auckland RPS 1999 6.4.19 Policies Landscape



fifteen

Coastal development

Coastal development

Issues

New Zealand's coastline is highly modified, with most coastal forest having been removed and the land converted to pasture, extensive coastal wetlands drained and dunelands developed. This modified coastline is still predominantly rural, and its unbuilt character is highly valued by New Zealanders.

The coast is under very strong development pressure because growing numbers of people want to live and have holiday homes by the sea. The pressure is particularly strong close to metropolitan areas such as Auckland, Hamilton, Wellington and Christchurch. This strong demand for coastal housing has resulted in the sprawl of settlements along the coast and the expansion of rural-residential housing throughout some rural coastal areas.

Subdivision and development of land within the coastal environment can have major impacts on the natural character of the coast and coastal landscapes through the introduction of human-made elements into largely natural rural areas. Such impacts are significantly increased where buildings are located on visually sensitive areas such as headlands and ridgelines.

Many of the impacts of coastal development are cumulative; one house may not have a major impact on the coastal landscape, but as the number of houses increases the rural landscape gradually becomes domesticated and the built environment dominates natural features. Effectively addressing these cumulative impacts requires a strong strategic planning approach.

RMA provisions

As well as protecting natural landscapes within the coastal environment (as described in Chapter 14), section 6 requires the RPS to recognise and provide for:

- The preservation of the natural character of the coastal environment and protection from inappropriate subdivision, use and development (section 6(a))
- The maintenance and enhancement of public access to and along the coastal marine area (section 6(d)).

The NZCPS 2010 provides detailed guidance on how councils are to manage the coastal environment and what RPSs need to contain.

Policy 1 identifies what comprises the ‘coastal environment’ and provides useful guidance for the spatial identification of the coastal environment in RPSs (see Figure 23). It is important that the landward extent of the coastal environment is spatially identified on maps so that it is very clear where the NZCPS policies apply. Including maps of the extent of the coastal environment in RPSs, will help ensure that a consistent approach is taken within the region to the location of the coastal environment in regional and district plans.

1. Recognise that the extent and characteristics of the coastal environment vary from region to region and locality to locality; and the issues that arise may have different effects in different localities.
2. Recognise that the coastal environment includes:
 - a. the coastal marine area;
 - b. islands within the coastal marine area;
 - c. areas where coastal processes, influences or qualities are significant, including coastal lakes, lagoons, tidal estuaries, saltmarshes, coastal wetlands, and the margins of these;
 - d. areas at risk from coastal hazards;
 - e. coastal vegetation and the habitat of indigenous coastal species including migratory birds;
 - f. elements and features that contribute to the natural character, landscape, visual qualities or amenity values;
 - g. items of cultural and historic heritage in the coastal marine area or on the coast;
 - h. inter-related coastal marine and terrestrial systems, including the intertidal zone; and
 - i. physical resources and built facilities, including infrastructure, that have modified the coastal environment.

Figure 23: NZCPS 2010 policy 1 Extent and characteristics of the coastal environment

Policy 13 of the NZCPS provides guidance on how RPSs are to preserve the natural character of the coastal environment (see Figure 24). This requires councils to *avoid adverse effects* of activities on areas with outstanding natural character and to *avoid significant adverse effects* on all other areas of the coastal environment with natural character. Areas of outstanding natural character will need to be spatially identified if all adverse effects, including cumulative effects, are to be avoided.

All areas of the coast, including those which are highly modified, have some natural character. This is recognized in policy 13(2)(g) which refers to ‘a range of natural character from pristine to modified’. Specific policies will therefore also need to be developed in RPSs to ensure that all significant adverse effects on natural character are avoided within the entire coastal environment.

In addition to preservation of natural character, Policy 14 of NZCPS 2010 requires restoration of the natural character of the coastal environment

by providing policies, rules and other methods directed at restoration or rehabilitation in RPSs.

The term 'natural character' is not defined in the RMA but policy 13(2) provides additional guidance on what it includes. This policy makes it clear that natural character is not the same as natural landscapes or amenity values and that it includes natural elements, processes and patterns as well as the human experience of the coastal environment, amongst other things.

1. To preserve the natural character of the coastal environment and to protect it from inappropriate subdivision, use, and development:
 - a. avoid adverse effects of activities on natural character in areas of the coastal environment with outstanding natural character; and
 - b. avoid significant adverse effects and avoid, remedy or mitigate other adverse effects of activities on natural character in all other areas of the coastal environment; including by:
 - c. assessing the natural character of the coastal environment of the region or district, by mapping or otherwise identifying at least areas of high natural character; and
 - d. ensuring that regional policy statements, and plans, identify areas where preserving natural character requires objectives, policies and rules, and include those provisions.
2. Recognise that natural character is not the same as natural features and landscapes or amenity values and may include matters such as:
 - a. natural elements, processes and patterns;
 - b. biophysical, ecological, geological and geomorphological aspects;
 - c. natural landforms such as headlands, peninsulas, cliffs, dunes, wetlands, reefs, freshwater springs and surf breaks;
 - d. the natural movement of water and sediment;
 - e. the natural darkness of the night sky;
 - f. places or areas that are wild or scenic;
 - g. a range of natural character from pristine to modified; and
 - h. experiential attributes, including the sounds and smell of the sea; and their context or setting.

Figure 24: NZCPS Policy 13 Preservation of natural character

Policy 7 of the NZCPS 2010 requires councils to take a strategic approach to managing the coastal environment (see Figure 25). This policy requires councils, when preparing the RPS, to consider where, how and when to provide for future development and other activities in the coastal environment at a regional and district level. It requires councils to identify areas within the coastal environment where particular activities are inappropriate or may be inappropriate without undergoing scrutiny through resource consenting and other processes. It also requires RPSs to identify coastal processes, resources

or values that are under threat or at significant risk from adverse cumulative effects.

This strategic approach is supported by Policy 6(1)(c) which requires councils to encourage the consolidation of existing coastal settlements and urban areas to avoid or mitigate sprawling and sporadic patterns of settlement.

1. In preparing regional policy statements, and plans:
 - a. consider where, how and when to provide for future residential, rural residential, settlement, urban development and other activities in the coastal environment at a regional and district level; and
 - b. identify areas of the coastal environment where particular activities and forms of subdivision, use, and development:
 - i. are inappropriate; and
 - ii. may be inappropriate without the consideration of effects through a resource consent application, notice of requirement for designation or Schedule 1 of the Resource Management Act process; and provide protection from inappropriate subdivision, use, and development in these areas through objectives, policies and rules.
2. Identify in regional policy statements, and plans, coastal processes, resources or values that are under threat or at significant risk from adverse cumulative effects. Include provisions in plans to manage these effects. Where practicable, in plans, set thresholds (including zones, standards or targets), or specify acceptable limits to change, to assist in determining when activities causing adverse cumulative effects are to be avoided.

Figure 25: NZCPS Policy 7 Strategic planning

Content of RPS

To effectively manage coastal development RPSs could be expected to include:

- Spatial identification of the landward extent of the coastal environment
- Spatial identification of areas of the coastal environment that have outstanding natural character as well as outstanding natural landscapes
- Identification of the elements which contribute to natural character and landscape values
- Spatial identification of important coastal habitats such as dune systems, coastal wetlands, coastal forest and shrublands
- Identification of coastal resources of importance to iwi and hapū within the region
- Clear indication of what activities are ‘inappropriate’ in these areas

- Clear definition of urban limits for all coastal settlements and delineation of areas within which rural-residential development will be confined
- Identification of where public access is currently available along the coastal edge, and to the coast, and priority areas for creating additional public access both to and along the coast.
- Identification of priority areas of the coast for restoration



sixteen

Coastal hazards

Coastal hazards

Issues

Much of New Zealand's coastline is subject to erosion and flooding, and this risk will increase as a result of global climate change. Considerable development has already taken place in areas that are subject to coastal hazards risk. New development is continuing to occur in parts of the coast which are likely to become subject to hazards thereby increasing the value of investment subject to risk.

In some cases hard protection works such as seawalls and groynes have been built to protect areas of coastal land, infrastructure such as roads, and buildings. The demand for such protection works is likely to increase in future.

Hard coastal protection works significantly reduce the natural character of the coast. This is because such works commonly:

- Obstruct natural coastal processes such as the ebb and flow of the tide and movement of sediment
- Reduce the size of important coastal habitats such as the inter-tidal area and dunes
- Visually reduce the naturalness of the coastline through interrupting natural patterns such as tides lapping on the beach and the shape of dunes and through the introduction of human-made structures such as straight lines and rock revetement walls
- Obstruct the ability of natural coastal systems to move inland in response to sea level rise

Hard protection works can also obstruct public access along the coastal edge through the loss of dry beach at high tide.

RMA provisions

Section 6(a) of the RMA requires the preservation of the natural character of the coastal environment and its protection from inappropriate use, development and subdivision. Section 6(d)) requires the maintenance and enhancement of public access to and along the coastal marine area.

The NZCPS 2010 includes a number of policies which are relevant to the management of coastal hazards at a regional level. Policy 24 provides guidance on the identification of areas within the coastal environment that are

potentially affected by coastal hazards (see Figure 26). This requires councils to identify such areas based on an assessment of hazard risks over at least 100 years.

Policy 25 requires councils to avoid increasing the risk of harm from coastal hazards including avoiding redevelopment and land use change in coastal hazard areas. It also requires councils to discourage the use of hard protection structures, among other things.

Policy 26 focuses on the protection and restoration of natural defences against coastal hazards including beaches, estuaries, wetlands, intertidal areas, coastal vegetation, dunes and barrier islands.

Identify areas in the coastal environment that are potentially affected by coastal hazards (including tsunami), giving priority to the identification of areas at high risk of being affected. Hazard risks, over at least 100 years, are to be assessed having regard to:

- a. physical drivers and processes that cause coastal change including sea level rise;
- b. short-term and long-term natural dynamic fluctuations of erosion and accretion;
- c. geomorphological character;
- d. the potential for inundation of the coastal environment, taking into account potential sources, inundation pathways and overland extent;
- e. cumulative effects of sea level rise, storm surge and wave height under storm conditions;
- f. influences that humans have had or are having on the coast;
- g. the extent and permanence of built development; and
- h. the effects of climate change on:
 - i. matters (a) to (g) above;
 - ii. storm frequency, intensity and surges; and
 - iii. coastal sediment dynamics;

taking into account national guidance and the best available information on the likely effects of climate change on the region or district.

Figure 26: NZCPS, 2010, Policy 24: Identification of coastal hazards

Content of RPS

The collective effect of these provisions of the NZCPS means that RPSs should:

- Identify areas in the coastal environment where natural hazards exist including areas that are likely to be subject to erosion or inundation as a result of sea level rise (over at least a 100-year time horizon)
- Ensure that new subdivision or development is not permitted to occur in areas subject to foreseeable coastal hazards

- Describe in what circumstances hard protection works may and may not be contemplated
- Provide for the protection and restoration of natural buffers such as beaches, sand dunes, mangroves, wetlands and barrier islands
- Identify where natural features may need to migrate inland and exclude subdivision or new development from these areas
- Provide for monitoring of the number of houses located within coastal hazard zones and their collective value (by measuring subdivision consents and new building permits in coastal hazard zones)



seventeen

Marine management

Marine management

Issues

Regional councils manage large marine areas extending twelve nautical miles offshore. In some regions, a council's marine jurisdiction will be larger than its terrestrial area. Marine areas provide home to a wealth of biodiversity including many plant, invertebrate, fish, marine mammal and seabird species. Marine areas are dynamic and fluid systems, with the life cycles of some species extending over very large distances.

As well as being ecologically very important, marine areas support a wide range of economic activities (fishing, aquaculture, mining, shipping, tourism), recreational activities (such as fishing, boating, swimming) and cultural activities (kaimoana harvesting). Most of these are reliant on marine areas retaining healthy functioning and productive ecosystems.

Pressures on marine areas are increasing as the population and economic activities grow. Land activities can have significant impacts on the sea through the release of sediment, nutrients, heavy metals and other pollutants. Extractive activities such as fishing can have major impacts on populations of fish species as well as on marine habitats, marine mammals, seabirds and broader ecosystem functioning.

As more activities are taking place in the marine area, conflicts over access to marine space are increasing. Activities such as aquaculture, mining and energy generation are likely to increase in the future. Unlike the situation on land, only a very small proportion of New Zealand's marine area has been fully protected by the establishment of marine reserves. Regional policy statements need to provide guidance as to the allocation of marine space between different uses, including for conservation purposes.

RMA provisions

In preparing a RPS, the regional council must recognise and provide for:

- The preservation of the natural character of the coastal environment (including the coastal marine area) and protection from inappropriate subdivision, use and development under section 6(a).
- The protection of significant marine habitats of indigenous fauna under section 6(c).

- The relationship of Māori with the marine area under section 6(e). For example, gathering kaimoana for sustenance and to provide for visitors is an integral component of Māori life.

The region must also have particular regard to any finite characteristics of the marine area (including threatened species), the intrinsic value of marine ecosystems and the maintenance and enhancement of the quality of the marine environment.

The NZCPS 2010 applies to the management of the marine area. The provisions relating to natural character, landscapes (which include seascapes) and indigenous biological diversity apply to the marine environment and have been described in other chapters. There are a range of other policies in the NZCPS which have particular application to the coastal marine environment.

Activities in the coastal marine area

Policy 6(2) focuses on activities in the coastal marine area and requires councils to provide for activities which have a functional need to be located in the coastal marine area, to promote the efficient use of occupied marine space, and to maintain and enhance public open space and recreational qualities and values.

The NZCPS contains policy of relevance to specific marine activities including a requirement that RPSs make provision for aquaculture activities in appropriate places in the marine environment (policy 8) and that councils considering providing for the efficient and safe operation of ports and their development in RPSs (Policy 9). Councils are also required to recognise the potential of renewable marine energy to contribute to meeting the energy needs of future generations (policy 6(2)(a)).

Invasive species

Invasive species can have a major negative impact on marine ecosystems and policy 12 of the NZCPS requires councils to provide in RPSs, as far as practicable, for the control of activities that could cause harmful aquatic organisms to be released or spread. Such activities include aquaculture and the movement of vessels and structures.

Contaminants

Other policies in the NZCPS address the impact of contaminants entering the marine environment. Policy 21 requires councils to give priority to the improvement of water quality in the coastal environment where deterioration is having significant adverse effects on ecosystems, natural habitats and water based recreational activities or restricting existing uses such as aquaculture

and shellfish gathering. This will require councils to identify areas where such adverse effects are occurring.

Policy 22 requires councils to assess and monitor sedimentation levels and impacts on the coastal environment and to control activities which result in sediment runoff. Policy 23 requires councils to take steps to avoid adverse effects of stormwater discharge into water in the coastal environment on a catchment-by-catchment basis, amongst other things.

Content of RPS

Regional policy statements could be expected to:

- Identify and protect important marine habitats, and connections between them that contribute to the ecological health and productivity of the marine area. Important marine habitats include significant fish spawning and nursery areas, mangroves, estuaries, seagrass beds, sponge gardens, horse mussel beds, kelp forests and calcarous gravels
- Protect habitats important to threatened species including seabirds and marine mammals such as the Hector's and Maui's dolphin (see Chapter 12) and the New Zealand sea lion and exclude activities from these areas that may be harmful to individual birds or mammals.
- Where marine mammals are increasing in numbers after historical depletion, such as is the case with New Zealand sea lions, seals and the southern right whales, identify and protect habitats that may be suitable for recolonisation.
- Identify and protect marine resources of significance to iwi and hapū within the region
- Identify marine areas where water quality has deteriorated and is having significant adverse effects on ecosystems or human activities and provide a policy framework for improving water quality in these areas including measurable objectives and a timeframe for meeting them.
- Identify marine areas susceptible to impacts from land-sourced impacts such as sedimentation and pollution. These are likely to include estuaries, harbours and embayments. Where possible the RPS should provide an indication of the carrying capacity of these areas, as a way of integrating catchment management with the marine area and driving management responses upstream from the bottom of the catchment.

- Provide a framework for the allocation of marine space in areas where there is currently or likely to be conflict between competing uses, including marine protection, customary activities, aquaculture, fishing activity, shipping and recreational activities.
- Describe a monitoring programme for the marine area that measures the health of important benthic habitats, water quality and keystone species, as well as sedimentation levels and their impacts.



eighteen

Freshwater management

Freshwater management

Issues

New Zealand has an abundance of freshwater that is contained in rivers, streams, lakes, wetlands and aquifers. The freshwater bodies are used by a wide variety of wildlife including fish, birds and invertebrates. Many of these species are threatened including 26 species of freshwater fish and 18 species of freshwater birds.

Freshwater bodies have enormous value for a wide range of reasons including intrinsic values, ecological services, Māori cultural values, recreational activities, tourism, water supply, electricity generation and commercial fisheries.

Nutrient enrichment, excess organic matter and sedimentation are major problems for many fresh waterways in New Zealand. Extraction of water can also lead to loss of in-stream values, with available water being over-allocated in some areas. Agriculture and urban development are the activities that have the greatest impact on freshwater bodies.

RMA provisions

Several provisions of section 6 of the RMA are particularly relevant to freshwater management. These include:

- The preservation of the natural character of wetlands, lakes and rivers and their margins and their protection from inappropriate subdivision, use and development
- The protection of outstanding natural [freshwater] features and landscapes [that contain freshwater bodies] from inappropriate subdivision, use and development
- The protection of significant indigenous [freshwater] vegetation and significant [freshwater] habitats of indigenous fauna
- The maintenance and enhancement of public access to and along lakes and rivers
- The relationship of Māori and their culture and traditions with their ancestral water, sites, wāhi tapu and other taonga

Regional policy statements are required to recognise and provide for these matters. In addition, a RPS may not be inconsistent with a water conservation order (section 62(3)).

The NZCPS contains policies which are applicable to freshwater bodies within the coastal environment and these are described in chapter 17 in relation to the marine environment. As indicated in chapter 2, a proposed National Policy Statement on Freshwater Resources has been prepared and will need to be given effect to by RPSs when it is finalised.

Content of RPS

Regional policy statements could be expected to contain the following in relation to freshwater management:

- Spatial identification of areas of wetlands, lakes and rivers that have high natural character
- Spatial identification of areas of wetlands, lakes and rivers that provide significant habitats for indigenous fauna such as freshwater fish, invertebrates and birds. This should include identification of the habitats of endangered species
- Spatial identification of areas where public access to and along lakes and rivers is currently available and priority areas for the creation of additional public access
- Identification of freshwater resources and values of importance to iwi and hapū
- Identification of environmental flows for water bodies that may be affected by water abstraction, damming or diversion
- A framework for water allocation, indicating how any over-allocation will be addressed, and within what timeframe, and on what basis water will be allocated to competing uses
- A framework for establishing water quality standards for water bodies
- Methods and a timeframe for improving water quality where it falls below the standards
- Policies that identify how any activities that are currently (or may in the future) negatively impacting on water bodies are to be effectively managed including activities generating both point source and diffuse discharges

- Details of a monitoring programme for the regular measurement of water quantity, water quality and the ecological health of water bodies within the region

Effective freshwater management requires a catchment management approach to be adopted. This involves managing the cumulative impacts of activities on freshwater bodies within a catchment in an integrated manner, including point and non-point sourced discharges. As discussed in chapter 5, including sub-regional chapters in a RPS based on catchments, is a useful way of achieving such an integrated catchment management approach.

Additional information about freshwater management issues and approaches is contained in the EDS Guide to *Freshwater Management*. The report of the Land and Water Forum, *A Fresh Start for Freshwater*, identifies how water management can be improved and is also a useful resource for regional councils when preparing RPSs.

The European Union Framework Water Directive, that was adopted in 2000, provides a useful example of a timebound objective for freshwater management that provides a clear strategic direction. The Directive requires that member states achieve 'good status' for all freshwater bodies at the latest within fifteen years of the Directive entering into force. Good status is defined to include good ecological status and good chemical status and there are specific limits set out in tabular form in the Directive.



nineteen

Soil conservation

Soil conservation

Issues

Soil is a vital natural resource for New Zealand. Soils underpin the country's agricultural and horticulture industry. 'Seventeen per cent of New Zealand's gross domestic product depends on the top 15 centimetres of soil'.³⁵ Soil also provides essential ecosystem services such as retaining nutrients, breaking down pollutants, storing carbon and moderating water flow.

Soil loss through erosion not only reduces the fertility and productive capacity of the land, but results in negative impacts on freshwater bodies and the marine area which are the recipients of lost sediment. Erosion can also result in increased flooding, when the beds of rivers are raised by increased levels of sediment entering the river system, which reduces the capacity of the river basin to carry water. Overgrazing can also result in soil erosion, as can a range of other activities including forestry harvesting activities, earthworks, and farm tracks.

Agricultural and horticultural activities can also significantly impact on the health of soils. The impacts of stock, vehicles and soil cultivation can result in soil compaction, where the small pores between the soil particles are lost. This reduces the fertility of the soil and ability of pasture to grow. It also increases surface runoff as the water is less able to percolate through the soil.

Heavy cropping can result in the loss of organic matter. Organic matter is important to soil health, as it supports biological organisms within the soil, such as worms and fungi. It also stores carbon, provides nutrients, and increases the ability of the soil to absorb water.

The application of fertilisers can result in the buildup of nitrogen and phosphate in soils, in excess of the level which can be utilised by plants, resulting in leaching into waterways. It can also result in elevated levels of chemicals in the soil, such as cadmium and fluorine which are present in phosphate fertilisers.

Cadmium does not break down in the soil and therefore accumulates over time as phosphate fertiliser continues to be used. Cadmium then enters the food chain through crops grown in contaminated soil or through animals grazing on pasture grown in the soil. This can negatively affect human health if contaminated crops, dairy products or meat enters the food chain.³⁶

Zinc and copper contamination of soils can also occur as a result of rural activities. Zinc is a component of facial eczema remedies used for cattle and sheep. Copper is used as a fungicide on horticultural crops and in forestry and is also used as a feed additive in pig farming.³⁷

Soil can also effectively be lost through the subdivision of productive rural land for urban development.

RMA provisions

Regional councils have the function of controlling the use of land for the purpose of soil conservation (section 30(1)(c)(i)). Soil conservation is defined in section 2 of the Act as ‘avoiding, remedying, or mitigating soil erosion and maintaining the physical, chemical and biological qualities of soil’.

Section 5(b) of the Act refers directly to the need to address soil conservation issues through its reference to ‘safeguarding the life-supporting capacity of ... soil ...’ In preparing RPSs, regional councils are also required to have particular regard to ‘any finite characteristics of natural ... resources’ (section 7(g)) which includes soil.

Content of RPS

Regional policy statements could be expected to contain:

- Spatial identification of high value soils
- Spatial identification of areas at risk of erosion
- Spatial identification of catchments, or sub-catchments where soil quality is an issue
- Objectives which clearly identify soil quality standards which need to be met within a specified time frame, and/or maintained
- Policies that identify how any activities that are currently (or may in the future) negatively impact on soil conservation are to be effectively managed



twenty

Conclusion

Conclusion

New Zealand is facing many significant environmental challenges. Regional policy statements are at the heart of resource management in New Zealand. It is therefore important that they drive significant improvements in environmental outcomes on the ground. In order to achieve this, they need to be robust, clear and effective documents.

This Guide is designed to help achieve this through building on the collective experience of implementing first generation RPSs and describing how second generation RPSs can be considerably strengthened. If this can be achieved, regional policy statements should make a substantive contribution to the future welfare of the country.



appendix 1

Other legislative
provisions applying
to Hector's and
Maui's dolphins

Other legislative provisions applying to Hector's and Maui's dolphins

The impacts of human activities on Hector's and Maui's dolphins are managed by the Department of Conservation under the *Marine Mammal Protection Act 1978*, and by the Minister of Fisheries under the *Fisheries Act 1996*, as well as by regional councils under the RMA. Each of these pieces of legislation has a different focus although there is some overlap. Effective protection of the dolphins requires coordination between these different jurisdictions to ensure that both individual and cumulative effects are addressed. A summary of the non-RMA legislative provisions applying to the dolphins is included in the sections below.

Marine Mammal Protection Act provisions

The Marine Mammal Protection Act provides overall protection for marine mammals within New Zealand waters. Section 4 makes it an *offence* to 'take, catch, kill, injure, attract, poison, tranquillise, herd, harass, disturb, or possess' a marine mammal without a permit. A person cannot be prosecuted under this section, however, where a marine mammal is inadvertently killed or injured and the incident is reported. This can occur through activities such as fishing and boating. This means that the general protection is designed to prevent targeted hunting or harassment.

The Act has several other mechanisms to address specific threats to marine mammals. Section 3E provides for the approval of *population management plans* by the Minister of Conservation. These plans primarily address fishing-related mortality and specify the maximum allowable level of fishing-related mortality for specific marine mammal species. The plans do not have direct effect through the Marine Mammals Protection legislation, however, but through their interaction with the Fisheries Act.

Where a population management plan has been approved under the Marine Mammals Protection Act, section 15(1) of the Fisheries Act requires the Minister of Fisheries to take all reasonable steps to ensure that the maximum allowable fishing-related mortality level set in the plan is not exceeded.

A population management plan has not yet been developed for the Hector's or Maui's dolphin and there is no current intention by the Department of Conservation to prepare one. So these provisions currently have no effect in relation to these species. In fact, no population management plan for any species has been approved under these provisions of the Marine Mammals

Protection Act and the Department of Conservation is currently reviewing these provisions.

Another protection mechanism provided for in the Act is the establishment of *marine mammal sanctuaries* under section 22. The sanctuaries are established by the Minister of Conservation who may impose restrictions on activities which may be undertaken within the sanctuaries. Five marine mammal sanctuaries have been created under these provisions to protect the Hector's and Maui's dolphins:

- *Banks Peninsula Marine Mammal Sanctuary* that extends from the mouth of the Rakaia River to the mouth of the Waipara River and offshore to 12 nautical miles. The sanctuary covers approximately 413,000 hectares of sea along 389 kilometres of coastline (see Figure 26).
- *Catlins Coast Marine Mammal Sanctuary* that extends from Three Brother's Point offshore 5 nautical miles to a point 6.9 nautical miles offshore to Bushy Point Beacon. The sanctuary is approximately 65,967 hectares in size extending along 161 kilometres of coastline (See Figure 27).
- *Clifford and Cloudy Bay Marine Mammal Sanctuary* that extends from Cape Campbell to a point 12 nautical miles offshore in a direct line to Tory Channel. The sanctuary is approximately 142,716 hectares in size and extends along 338 kilometres of coastline (see Figure 28).
- *Te Waewae Bay Marine Mammal Sanctuary* that extends from Pahia Point to Sand Hill Point. The sanctuary is approximately 35,906 hectares in size and extends along 113 kilometres of coastline (see Figure 29).
- *West Coast North Island Marine Mammal Sanctuary* that extends from Maunganui Bluff in Northland to Oakura Beach in Taranaki offshore to 12 nautical miles. The sanctuary is approximately 1,200,086 hectares in size extending along 2,164 kilometres of coastline (see Figure 30).

Restrictions have been placed on undertaking seismic surveys within all these sanctuaries. There are also restrictions on the mining of minerals in part of the West Coast North Island Marine Mammals Sanctuary – offshore two nautical miles and in some areas to four nautical miles (see Figure 31). These sanctuaries have been located in coastal marine areas of particular importance to Hector's and Maui's dolphins. They should be identified in RPSs and can usefully provide a focus for complementary protection measures under the RMA.

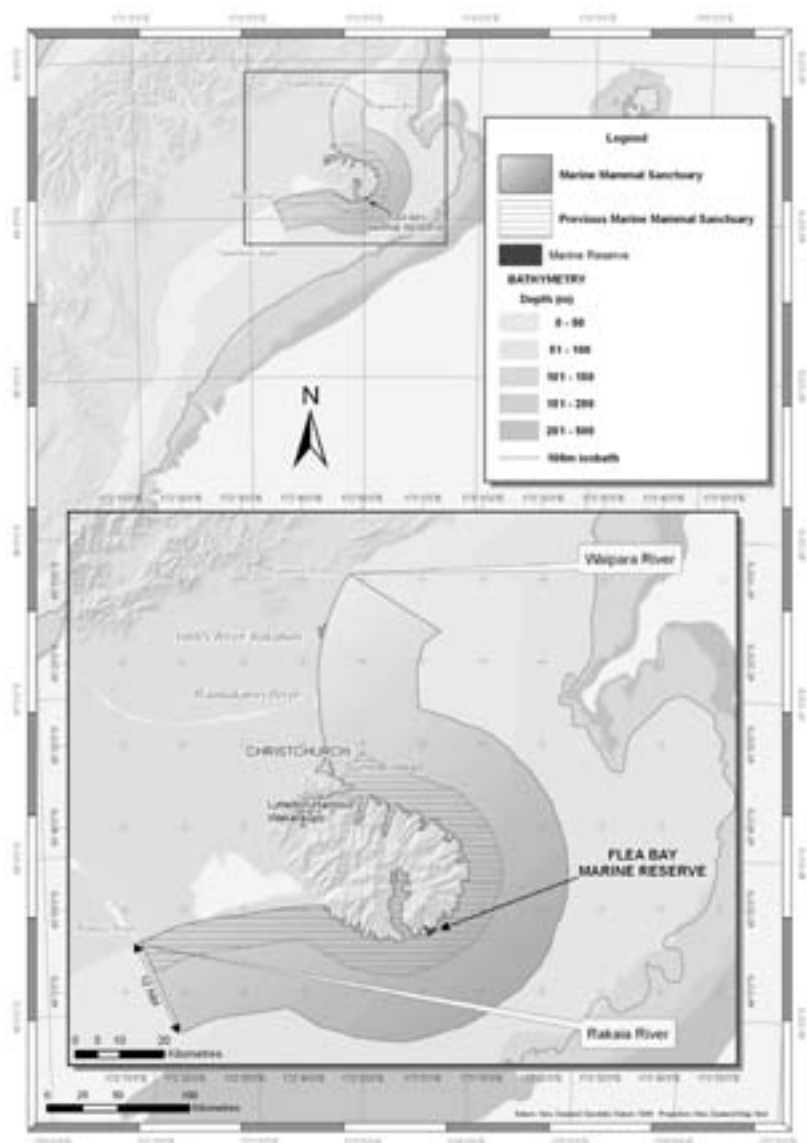


Figure 27: Banks Peninsula Marine Mammal Sanctuary

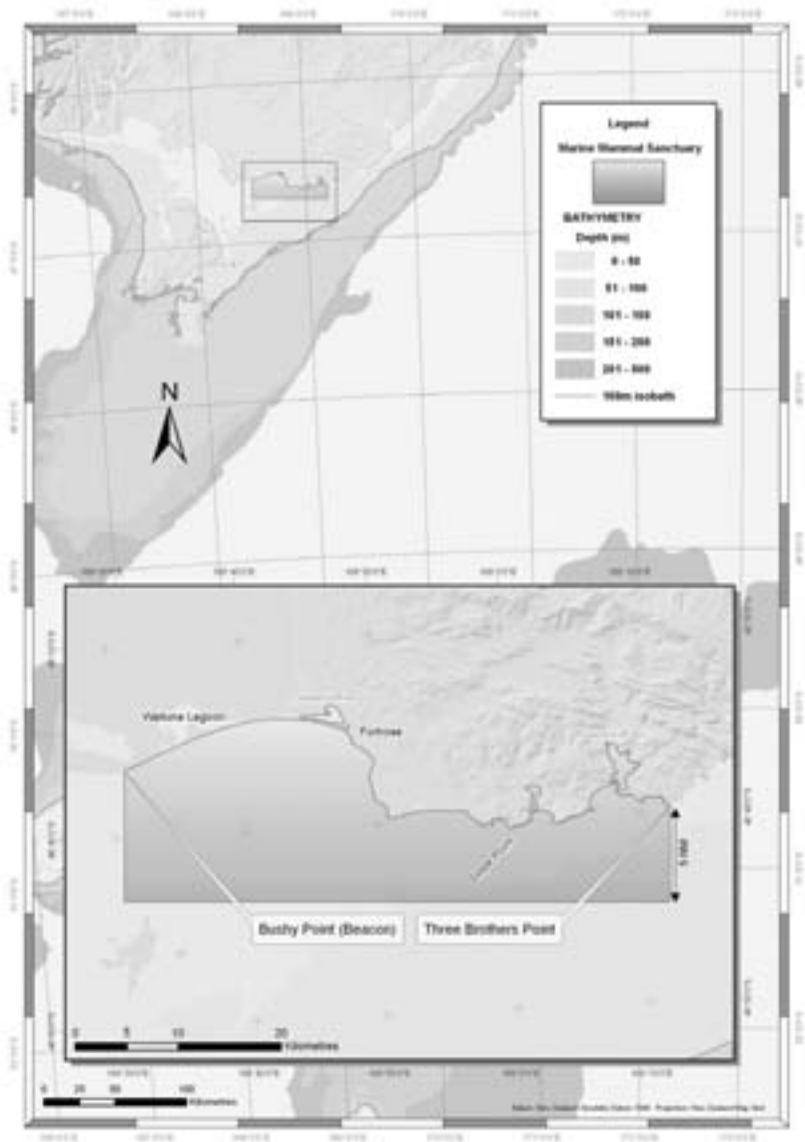


Figure 28: Catlins Coast Marine Mammal Sanctuary

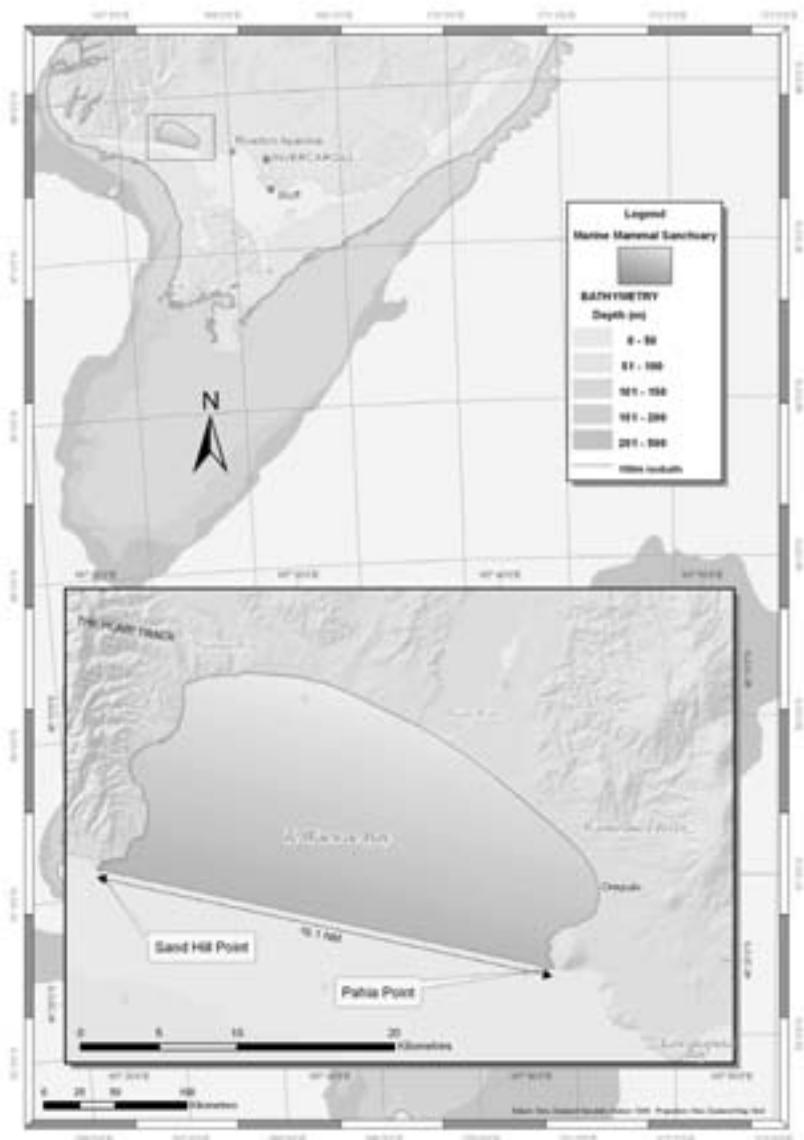


Figure 30: Te Waewae Bay Marine Mammal Sanctuary

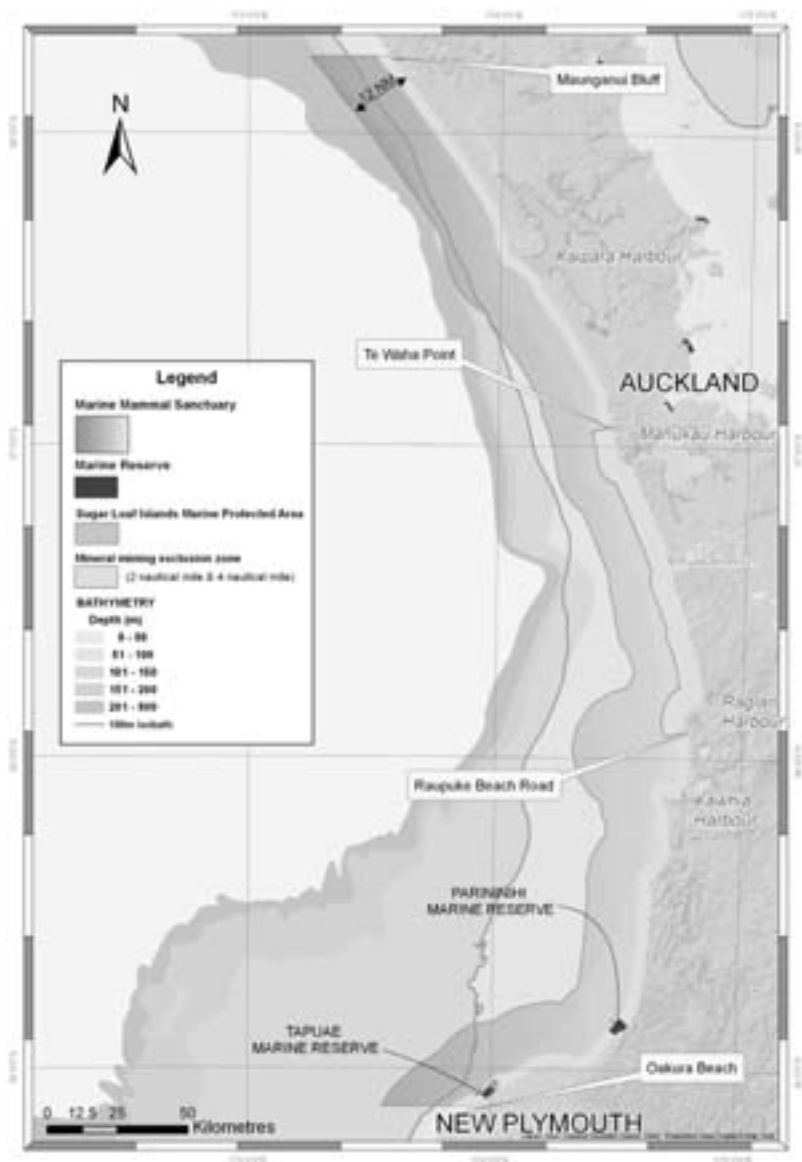


Figure 31: West Coast North Island Marine Mammal Sanctuary

The Marine Mammals Protection Regulations 1992 are designed to manage the interaction of people with marine mammals, particularly as a result of marine tourism operations. The regulations provide a set of standards for behavior in the vicinity of marine mammals and also require all commercial operators targeting marine mammals to obtain a permit from the Director-General of Conservation.

Fisheries Act provisions

Section 15 of the Fisheries Act provides the framework for the Minister of Fisheries to address fishing-related mortality of the dolphins, that is, the number of dolphins killed inadvertently as a result of fishing activity. In the absence of a population management plan, the Minister may 'take such measures as he or she considers are necessary to avoid, remedy or mitigate the effect of fishing-related mortality on any protected species, and such measures may include setting a limit on fishing-related mortality' (section 15(2)). The Minister may also prohibit all or any fishing or fishing methods in an area to ensure that any limit on fishing-related mortality is not exceeded (section 15(5)(b)).

There are a number of fishing prohibitions in place to protect the Hector's and Maui's dolphins, primarily targeted at set nets. These are summarised in Figure 32.

These restrictions do not extend to all areas where Hector's or Maui's dolphins may be present so there is still a risk that some dolphins will be killed through entanglement in fishing equipment.

Area	Fishing restrictions
North Island west coast <i>Maunganui Bluff north of Kaipara harbour to Pariokariwa point north of New Plymouth</i>	• Commercial and recreational set netting prohibited offshore to 7 nm and in the entrances of the Kaipara, Manukau and Raglan harbours and the Waikato river entrance • Trawling prohibited to 2nm and to 4nm between the Manukau Harbour and Port Waikato • Commercial and recreational drift netting prohibited in the Waikato River
South Island east coast <i>Cape Jackson in the Marlborough Sounds to Slope Point in the Catlins</i>	• Commercial and recreational set netting prohibited offshore to 4 nm and in the Avon-Heathcote Estuary, Lyttelton, Akaroa and Timaru harbours and the bays around Banks Peninsula with the following exceptions: • Around the Kaikoura Canyon commercial set netting is prohibited to only about 1 nm • Commercial and recreational set netting is allowed between 1 April and 30 September in designated areas in the inner Queen Charlotte Sound, Lyttelton harbour, Akaroa harbour, Port Levy and Pigeon Bay if using specified flatfish nets • An exemption for butterfish applies to the top of the east coast of the South Island • Offshore to 2nm only trawl nets with defined low headline heights may be used
South Island south coast <i>Slope Point in the Catlins to Sand Hill Point east of Fiordland</i>	• Commercial and recreational set netting prohibited offshore to 4nm and in the whole of Te Waewae bay • Offshore to 2nm only trawl nets with defined low headline heights may be used
South Island west coast <i>Farewell Spit lighthouse to Awarua Point north of Fiordland</i>	• Recreational set netting prohibited offshore to 2nm • Commercial set netting prohibited offshore to 2nm between 1 December and 28 February

Figure 32: Summary of fishing restrictions to protect Hector's and Maui's dolphins



appendix 2

Relevant legal
provisions

Relevant legal provisions

Purpose and principles of the RMA

5 Purpose

- (1) The purpose of this Act is to promote the sustainable management of natural and physical resources.
- (2) In this Act, sustainable management means managing the use, development, and protection of natural and physical resources in a way, or at a rate, which enables people and communities to provide for their social, economic, and cultural well-being and for their health and safety while –
 - (a) sustaining the potential of natural and physical resources (excluding minerals) to meet the reasonably foreseeable needs of future generations; and
 - (b) safeguarding the life-supporting capacity of air, water, soil, and ecosystems; and
 - (c) avoiding, remedying, or mitigating any adverse effects of activities on the environment.

6 Matters of national importance

In achieving the purpose of this Act, all persons exercising functions and powers under it, in relation to managing the use, development, and protection of natural and physical resources, shall recognise and provide for the following matters of national importance:

- (a) the preservation of the natural character of the coastal environment (including the coastal marine area), wetlands, and lakes and rivers and their margins, and the protection of them from inappropriate subdivision, use, and development;
- (b) the protection of outstanding natural features and landscapes from inappropriate subdivision, use, and development;
- (c) the protection of areas of significant indigenous vegetation and significant habitats of indigenous fauna;
- (d) the maintenance and enhancement of public access to and along the coastal marine area, lakes, and rivers;

- (e) the relationship of Māori and their culture and traditions with their ancestral lands, water, sites, waahi tapu, and other taonga:
- (f) the protection of historic heritage from inappropriate subdivision, use, and development:
- (g) the protection of recognised customary activities.

7 Other matters

In achieving the purpose of this Act, all persons exercising functions and powers under it, in relation to managing the use, development, and protection of natural and physical resources, shall have particular regard to –

- (a) kaitiakitanga:
- (aa) the ethic of stewardship:
- (b) the efficient use and development of natural and physical resources:
- (ba) the efficiency of the end use of energy:
- (c) the maintenance and enhancement of amenity values:
- (d) intrinsic values of ecosystems:
- (e) *[Repealed]*
- (f) maintenance and enhancement of the quality of the environment:
- (g) any finite characteristics of natural and physical resources:
- (h) the protection of the habitat of trout and salmon:
- (i) the effects of climate change:
- (j) the benefits to be derived from the use and development of renewable energy.

8 Treaty of Waitangi

In achieving the purpose of this Act, all persons exercising functions and powers under it, in relation to managing the use, development, and protection of natural and physical resources, shall take into account the principles of the Treaty of Waitangi (Te Tiriti o Waitangi).

Requirements for regional policy statements under the RMA

59 Purpose of regional policy statements

The purpose of a regional policy statement is to achieve the purpose of the Act by providing an overview of the resource management issues of the region and policies and methods to achieve integrated management of the natural and physical resources of the whole region.

60 Preparation and change of regional policy statements

- (1) There shall at all times be for each region 1 regional policy statement prepared by the regional council in the manner set out in Schedule 1.
- (2) A regional policy statement may be changed in the manner set out in Schedule 1, at the instigation of a Minister of the Crown, the regional council, or any territorial authority within or partly within the region.

61 Matters to be considered by regional council (policy statements)

- (1) A regional council shall prepare and change its regional policy statement in accordance with its functions under section 30, the provisions of Part 2, and its duty under section 32 and any regulations.
- (2) In addition to the requirements of section 62(2), when preparing or changing a regional policy statement, the regional council shall have regard to –
 - (a) any –
 - (i) management plans and strategies prepared under other Acts; and
 - (ii) *[Repealed]*
 - (iia) relevant entry in the Historic Places Register; and
 - (iii) regulations relating to ensuring sustainability, or the conservation, management, or sustainability of fisheries resources (including regulations or bylaws relating to taiapure, mahinga mataitai, or other non-commercial Māori customary fishing); and

to the extent that their content has a bearing on resource management issues of the region; and

- (b) the extent to which the regional policy statement needs to be consistent with the policy statements and plans of adjacent regional councils.
- (2A) A regional council, when preparing or changing a regional policy statement, must –
 - (a) take into account any relevant planning document recognised by an iwi authority, and lodged with the council, to the extent that its content has a bearing on resource management issues of the region; and
 - (b) recognise and provide for the management plan for a foreshore and seabed reserve located in whole or in part within its region, once the management plan has been lodged with the council.
- (3) In preparing or changing any regional policy statement, a regional council must not have regard to trade competition or the effects of trade competition.

62 Contents of regional policy statements

- (1) A regional policy statement must state –
 - (a) the significant resource management issues for the region; and
 - (b) the resource management issues of significance to –
 - (i) iwi authorities in the region; and
 - (ii) the board of a foreshore and seabed reserve, to the extent that those issues relate to that reserve; and
 - (c) the objectives sought to be achieved by the statement; and
 - (d) the policies for those issues and objectives and an explanation of those policies; and
 - (e) the methods (excluding rules) used, or to be used, to implement the policies; and
 - (f) the principal reasons for adopting the objectives, policies, and methods of implementation set out in the statement; and
 - (g) the environmental results anticipated from implementation of those policies and methods; and

- (h) the processes to be used to deal with issues that cross local authority boundaries, and issues between territorial authorities or between regions; and
 - (i) the local authority responsible in the whole or any part of the region for specifying the objectives, policies, and methods for the control of the use of land –
 - (i) to avoid or mitigate natural hazards or any group of hazards; and
 - (ii) to prevent or mitigate the adverse effects of the storage, use, disposal, or transportation of hazardous substances; and
 - (iii) to maintain indigenous biological diversity; and
 - (j) the procedures used to monitor the efficiency and effectiveness of the policies or methods contained in the statement; and
 - (k) any other information required for the purpose of the regional council's functions, powers, and duties under this Act.
- (2) If no responsibilities are specified in the regional policy statement for functions described in subsection (1)(i)(i) or (ii), the regional council retains primary responsibility for the function in subsection (1)(i)(i) and the territorial authorities of the region retain primary responsibility for the function in subsection (1)(i)(ii).
- (3) A regional policy statement must not be inconsistent with any water conservation order and must give effect to a national policy statement or New Zealand coastal policy statement.

Relevant sections of the Waitakere Ranges Heritage Area Act 2008

3 Purpose

- (1) The purpose of this Act is to –
 - (a) recognise the national, regional, and local significance of the Waitakere Ranges heritage area; and
 - (b) promote the protection and enhancement of its heritage features for present and future generations.
- (2) To this end, the Act –

- (a) establishes the Waitakere Ranges heritage area; and
- (b) states its national significance; and
- (c) defines its heritage features; and
- (d) specifies the objectives of establishing and maintaining the heritage area; and
- (e) provides additional matters for Auckland Regional Council, Rodney District Council, Waitakere City Council, and certain other persons to consider when making a decision, exercising a power, or carrying out a duty that relates to the heritage area.

8 Heritage area objectives

The objectives of establishing and maintaining the heritage area are –

- (a) to protect, restore, and enhance the area and its heritage features:
- (b) to ensure that impacts on the area as a whole are considered when decisions are made affecting any part of it:
- (c) to adopt the following approach when considering decisions that threaten serious or irreversible damage to a heritage feature:
 - (i) carefully consider the risks and uncertainties associated with any particular course of action; and
 - (ii) take into account the best information available; and
 - (iii) endeavour to protect the heritage feature:
- (d) to recognise and avoid adverse potential, or adverse cumulative, effects of activities on the area's environment (including its amenity) or its heritage features:
- (e) to recognise that, in protecting the heritage features, the area has little capacity to absorb further subdivision:
- (f) to ensure that any subdivision or development in the area, of itself or in respect of its cumulative effect –
 - (i) is of an appropriate character, scale, and intensity; and
 - (ii) does not adversely affect the heritage features; and
 - (iii) does not contribute to urban sprawl:
- (g) to maintain the quality and diversity of landscapes in the area by –

- (i) protecting landscapes of local, regional, or national significance; and
 - (ii) restoring and enhancing degraded landscapes; and
 - (iii) managing change within a landscape in an integrated way, including managing change in a rural landscape to retain a rural character:
- (h) to manage aquatic and terrestrial ecosystems in the area to protect and enhance indigenous habitat values, landscape values, and amenity values:
 - (i) to recognise that people live and work in the area in distinct communities, and to enable those people to provide for their social, economic, environmental, and cultural well-being:
- (j) to provide for future uses of rural land in order to retain a rural character in the area:
- (k) to protect those features of the area that relate to its water catchment and supply functions:
- (l) to protect in perpetuity the natural and historic resources of the Waitakere Ranges Regional Park for their intrinsic worth and for the benefit, use, and enjoyment of the people and communities of the Auckland region and New Zealand.

10 Regional policy statements and regional plans

- (1) When preparing or reviewing a regional policy statement or regional plan that affects the heritage area, ARC must give effect to the purpose of this Act and the objectives.
- (2) The requirements in subsection (1) are in addition to the requirements in sections 61, 66, and 79 of the Resource Management Act 1991.
- (3) When evaluating a proposed policy statement, or proposed plan, change, or variation that affects the heritage area, ARC must also examine whether the statement, plan, change, or variation is the most appropriate way to achieve the objectives (having regard to the purpose of this Act).
- (4) The requirements in subsection (3) are in addition to the requirements in section 32(3) of the Resource Management Act 1991.

Relevant sections of the Hauraki Gulf Marine Park Act 2000

7 Recognition of national significance of Hauraki Gulf

- (1) The interrelationship between the Hauraki Gulf, its islands, and catchments and the ability of that interrelationship to sustain the life-supporting capacity of the environment of the Hauraki Gulf and its islands are matters of national significance.
- (2) The life-supporting capacity of the environment of the Gulf and its islands includes the capacity –
 - (a) to provide for –
 - (i) the historic, traditional, cultural, and spiritual relationship of the tangata whenua of the Gulf with the Gulf and its islands; and
 - (ii) the social, economic, recreational, and cultural well-being of people and communities:
 - (b) to use the resources of the Gulf by the people and communities of the Gulf and New Zealand for economic activities and recreation:
 - (c) to maintain the soil, air, water, and ecosystems of the Gulf.

8 Management of Hauraki Gulf

To recognise the national significance of the Hauraki Gulf, its islands, and catchments, the objectives of the management of the Hauraki Gulf, its islands, and catchments are –

- (a) the protection and, where appropriate, the enhancement of the life-supporting capacity of the environment of the Hauraki Gulf, its islands, and catchments:
- (b) the protection and, where appropriate, the enhancement of the natural, historic, and physical resources of the Hauraki Gulf, its islands, and catchments:
- (c) the protection and, where appropriate, the enhancement of those natural, historic, and physical resources (including kaimoana) of the Hauraki Gulf, its islands, and catchments with which tangata whenua have an historic, traditional, cultural, and spiritual relationship:

- (d) the protection of the cultural and historic associations of people and communities in and around the Hauraki Gulf with its natural, historic, and physical resources:
- (e) the maintenance and, where appropriate, the enhancement of the contribution of the natural, historic, and physical resources of the Hauraki Gulf, its islands, and catchments to the social and economic well-being of the people and communities of the Hauraki Gulf and New Zealand:
- (f) the maintenance and, where appropriate, the enhancement of the natural, historic, and physical resources of the Hauraki Gulf, its islands, and catchments, which contribute to the recreation and enjoyment of the Hauraki Gulf for the people and communities of the Hauraki Gulf and New Zealand.

9 Relationship of Act with Resource Management Act 1991

- (1) For the purposes of this section and section 10, the terms *district plan*, *plan*, *proposed plan*, *regional plan*, *regional policy statement*, *resource consent*, and *New Zealand coastal policy statement* have the same meaning as in the Resource Management Act 1991, and *regional council* and *territorial authority* have the same meaning as in the Local Government Act 2002.
- (2) A regional council must ensure that any part of a regional policy statement or a regional plan that applies to the Hauraki Gulf, its islands, and catchments, does not conflict with sections 7 and 8 of this Act.
- (3) A territorial authority must ensure that any part of a district plan that applies to the Hauraki Gulf, its islands, and catchments, does not conflict with sections 7 and 8 of this Act.
- (4) A consent authority must, when considering an application for a resource consent for the Hauraki Gulf, its islands, and catchments, have regard to sections 7 and 8 of this Act in addition to the matters contained in the Resource Management Act 1991.
- (5) The provisions of section 55 of the Resource Management Act 1991 apply as though sections 7 and 8 of this Act were a national policy statement and a regional council or a territorial authority must take action in accordance with that section and notify a change to a regional

policy statement, plan, or proposed plan within 5 years of the date of commencement of this Act.

10 Creation of New Zealand coastal policy statement by this Act

- (1) For the coastal environment of the Hauraki Gulf, sections 7 and 8 of this Act must be treated as a New Zealand coastal policy statement issued under the Resource Management Act 1991.
- (2) For the coastal environment of the Hauraki Gulf, if there is a conflict between sections 7 and 8 of this Act and the provisions of any New Zealand coastal policy statement issued under the Resource Management Act 1991, the New Zealand coastal policy statement prevails.
- (3) The provisions of section 55 of the Resource Management Act 1991 apply to the New Zealand coastal policy statement created by this section and a regional council or a territorial authority must take action in accordance with that section and notify a change to a regional policy statement, plan, or proposed plan within 5 years of the date of commencement of this Act.

Relevant sections of the Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010

11 Vision and strategy is part of Waikato Regional Policy Statement

- (1) On and from the commencement date, the vision and strategy in its entirety is deemed to be part of the Waikato Regional Policy Statement without the use of the process in Schedule 1 of the Resource Management Act 1991.
- (2) As soon as reasonably practicable after the commencement date, the Council must—
 - (a) insert the vision and strategy into the policy statement without using the process in Schedule 1 of the Resource Management Act 1991; and
 - (b) make consequential amendments to records and publications to reflect paragraph (a).
- (3) On and from the commencement date, the Council must ensure that the policy statement does not remain inconsistent with the vision and

strategy for any longer than is necessary to amend the policy statement to make it consistent with the vision and strategy.

- (4) The vision and strategy prevails over the policy statement during any period of inconsistency described in subsection (3).

12 Effect of vision and strategy on Resource Management Act 1991 planning documents

- (1) The vision and strategy prevails over any inconsistent provision in –
 - (a) a national policy statement issued under section 52 of the Resource Management Act 1991; and
 - (b) a New Zealand coastal policy statement issued under section 57 of the Resource Management Act 1991.
- (2) The Council must not review or amend under section 79 of the Resource Management Act 1991 the vision and strategy inserted in the Waikato Regional Policy Statement.
- (3) A local authority must not amend under section 55 of the Resource Management Act 1991 a document defined in section 55(1) of the Act if the amendment would make the document inconsistent with the vision and strategy.
- (4) A rule included in a regional or district plan for the purpose of giving effect to the vision and strategy prevails over a national environmental standard made under section 43 of the Resource Management Act 1991, if it is more stringent than the standard.
- (5) A rule included in a regional or district plan for the purpose of giving effect to the vision and strategy prevails over a water conservation order made under section 214 of the Resource Management Act 1991, if it is more stringent than the order.

13 Updating Resource Management Act 1991 planning documents to conform with reviewed vision and strategy

- (1) The Council must follow the process in subsection (3), and every local authority must follow the process in subsection (4), after every vision and strategy review.
- (2) The local authority must begin the process –
 - (a) no later than 6 months after the completion of the review under section 18:

- (b) no later than 12 months after the completion of each review under section 19.
- (3) The Council must –
 - (a) review the Waikato Regional Policy Statement to see whether it is consistent with the vision and strategy; and
 - (b) if the policy statement is inconsistent with the vision and strategy, initiate an amendment to it to make it consistent, using the process in Schedule 1 of the Resource Management Act 1991.
- (4) Every local authority must –
 - (a) review its regional or district plan to see whether it gives effect to the vision and strategy; and
 - (b) if the regional or district plan does not give effect to the vision and strategy, initiate an amendment to it to ensure that it does so, using the process in Schedule 1 of the Resource Management Act 1991.
- (5) Subsection (6) applies if a joint management agreement between a local authority and the Trust is not in force when the local authority begins the process under subsection (3) or (4).
- (6) The local authority must, –
 - (a) as soon as practicable after the commencement of a review under subsection (3)(a) or (4)(a), convene a joint working party under section 46(2)(a); and
 - (b) decide jointly with the Trust on the final recommendation on whether to make an amendment to a Resource Management Act 1991 planning document, as provided for in section 46(2)(b); and
 - (c) decide jointly with the Trust on the final recommendation on the content of a Resource Management Act 1991 planning document to be notified under clause 5 of Schedule 1 of the Resource Management Act 1991, as provided for in section 46(2)(c); and
 - (d) discuss with the Trust the potential for the Trust to participate in the decisions on a Resource Management Act 1991 planning document under clause 10 of Schedule 1 of the Resource Management Act 1991, as provided for in section 46(2)(d).

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Index

Page numbers in **bold** refer to illustrations.

- adverse environmental effects and issues 9, 74–5
 - analysis and identification 20, 30, 36
 - cumulative 22, 37, 100, 103, 141
 - see also* avoidance of adverse effects; issues statements; mitigation of adverse effects; remediation of adverse effects; and sub-entry 'issues' under entries such as coastal environment
- agencies
 - coordination 4, 20
 - data 48
 - see also* regional councils; territorial authorities
- agriculture, impacts 51, 53, 54, 74, 83, 91, 94, 100, 116, 120
- air quality 8
 - and urban development 90
 - example of issue description 52
- Akaroa harbour **82**
- amenity values 95, 97, 98, 142
- aquaculture 37, 38, 110, 111
 - impact on Hector's and Maui's dolphins 81–2, 85, 86, 87
- Aquaculture Legislation Amendment Bill (No 3) 2010 86
- avoidance of adverse effects 9, 43, 75, 84, 95, 96, 98, 101, 102, 103, 133, 140
- Auckland region 10, 36
- Auckland Regional Council 79, 141, 142
- Auckland Regional Policy Statement 39, 40, **42**, **43**, 98
- Banks Peninsula Marine Mammal Sanctuary 127, **128**
- Bay of Plenty proposed Regional Policy Statement 32, 33, 39, **41**, 53, 57, 59, 60, 65, 91
- biodiversity 10, 11, 53, 74–5, 85, 140
 - and kaitiakitanga 26
 - marine areas 74, 76, 110
 - monitoring 76
 - protection 74–5, 85
- biodiversity loss 74
 - example of issue description 52–3
- birds 74, 75, 101, 110, 112, 116, 117
- cadmium 120
- Canterbury Plains 51
- Canterbury Regional Policy Statement 51, 52, 61, 65
- catchments
 - integrated management 25, 31, 37, 52, 112
 - run-off 48, 50, 52, 84, 86, 87, 90, 112
 - soil quality, identification 121
 - water quality 60, 65
- Catlins Coast Marine Mammal Sanctuary 127, **129**
- Clifford and Cloudy Bay Marine Mammal Sanctuary 127, **130**
- climate change 106, 107
- coastal environment
 - activities impacting on marine environment 83, 84–5, 86, 87, 110, 111–12
 - biodiversity 74, 75, 76
 - content of RPSs 103–4
 - development 38, 39, 57, 60, 87, 94, 100–4, 106, 107, 108
 - example of objectives 57–8
 - examples of policies 60, 61
 - habitats 101
 - issues 100, 106
 - landscapes 95, 100
 - and Māori 24, 26, 27–8
 - mapping 37–8, 39, 40, **41**, **44**, 101, 102, 103
 - modification 74, 100, 101
 - natural character 9, 38, 57–8, 60, 100, 101–2, 106, 110, 136
 - public access 9, 58, 104, 106, 136
 - RMA provisions 100–3
 - water pollution 53–4, 83, 84, 85
 - see also* New Zealand Coastal Policy Statement
- coastal hazards 101, 106–8
 - hard protection works 106, 107, 108
- co-governance agreements 22
- Conservation Act 1987 16, 49

- consultation 49; *see also* Māori – RPS
 - participatory process
- countryside living 39, 91
- cross-boundary issues 11
- Crown Research Institutes 48
- cultural landscapes 95–6
- cumulative impacts of activities 22, 37, 100, 103, 141

- DDT 83
- degradation, land 13, 61, 65, 94, 142
 - example of description 51
 - marine areas susceptible to 40, **43**
 - see also* soils – erosion
- Department of Conservation 16, 48, 78, 81, 126–7
- development
 - coastal 38, 39, 57, 60, 87, 94, 100–4, 106, 107, 108
 - examples of policies 59, 60
 - growth management 90–1
 - impact on landscapes 94, 95, 96, 97
 - impact on natural resources and ecosystems 74
 - impact on soils 51–2, 121
 - impact on water quality 116
 - inappropriate 37, 57, 58, 60, 94, 95, 96, 97, 100, 102, 103, 116, 136, 137
 - iwi and hapū 26
 - mapping 37, 38, 39, **41**, **42**
 - monitoring 97
 - see also* subdivisions; urban environment
- district councils 52
- district plans 4, 15, 36, 56, 59, 60, 145, 146, 147
- dotterel, New Zealand 75
- dunelands 74, 100, 103, 106, 107, 108

- ecosystems 8, 74
 - approach to management 9
 - identification 22
 - monitoring 65, 76
 - protection 75, 76, 84, 142
 - Waitakere Ranges 142
- energy generation, marine 83, 86, 87, 110, 111
- Environment Canterbury 79
- Environment Court 8, 11, 14, 27, 30, 95
- Environment Waikato 79
- environmental analysis 30, 49

- estuaries 75, 101, 107, 112
- European Union Framework Water Directive 118

- fairy tern, New Zealand 75
- fauna indigenous 58, 59, 65, 74, 75, 76, 101, 110, 112, 116, 117, 136; *see also* birds; fish; marine mammals; threatened species
- fish 81, 100, 112
 - freshwater 116, 117
- Fisheries Act 1996 17, 49, 85, 86, 126, 133, 134
- fisheries plans 16–17, 49
- fishing, adverse effects 74, 110, 126, 133
 - Hector's and Maui's dolphins 79, 81, 85–6, 133, 134
- flora, indigenous, *see* vegetation, indigenous
- forests 24, 52, 74, 94, 100
- freshwater bodies
 - allocation of water to competing uses 117
 - biodiversity 53, 74, 76
 - content of RPSs 117–18
 - example of objectives 58
 - example of policies 59–60, 61
 - issues 116
 - mapping 37, 38
 - modification 74, 116, 120
 - natural character 9, 116, 117
 - public access 9, 116, 136
 - RMA provisions 116–17
 - see also* water pollution; wetlands
- funding 49

- Greater Wellington proposed Regional Policy Statement 32, 39, **42**, 53, 58
- growth management 90–1
- Gulf Harbour **16**

- habitats
 - coastal 101
 - examples of objectives 58, 65
 - freshwater 116, 117
 - loss to urban development 90
 - mapping 38, 40, **45**
 - marine 110, 112
 - modification 74
 - monitoring 65, 76
 - nationally important 9

- regionally significant 76
- protection 74, 75, 76, 84, 142
- Hauraki Gulf Marine Park Act 2000 10, 143–5
- hazardous substances 11, 51, 52, 140
- hazards, natural 11, 91, 140
 - coastal 101, 106–8
- Hector's dolphin 75
 - content of RPSs 86–7, 112, 127
 - distribution map **80**
 - habitat 78–9
 - issues 78–9, 81–3
 - legislative provisions other than RMA 126–34
 - RMA provisions 84–6
- historic heritage 9, 137
 - coastal 101
 - example of objective 57
 - landscapes 95–6
 - Māori 26, 137
 - see also* Waitakere Ranges Heritage Area Act 2008
- infrastructure assets 39
- integrated management 4, 8, 15, 20–1, 84
 - and kaitiakitanga 25
 - mapping role 37
 - monitoring 64
 - regional 48
 - sub-regional ecological units 31
- internet, designing RPSs for 31
- invasive species, and marine ecosystems 111
- issues statement 50, 68
 - examples of issues descriptions 51–4
- iwi authorities 11, 17
 - co-governance agreements 22
 - definition 27
- iwi planning documents 27–8, 49
- kaitiakitanga 17, 20, 24–6, 137
 - meaning of 25
- Kawau Bay **38**
- lakes, *see* freshwater bodies
- land degradation, *see* degradation, land
- Land Transport Management Act 2003 15, 21
- land use planning 4
 - coordination 21
 - integration 52

- mapping 37
 - RPS elements 13
- landscapes, outstanding and significant
 - content of RPSs 97
 - examples of objectives 58
 - freshwater bodies 116
 - heritage and cultural landscapes 95–6
 - issues 94
 - mapping and identification 36, 37, 39, **42**, 94, 95, 97, 98
 - modification 94
 - nationally important 9
 - protection 91, 94–8, 136
 - RMA provisions 94–6
 - Waitakere Ranges 141–2
- local authorities, *see* territorial authorities
- Local Government Act 2002 4, 15, 16, 49
- Local Government (Auckland Law Reform) Act 2010 36
- long term council community plans 15, 16, 49
- Mackenzie Basin 94
- mahinga mātaihai 17
- Mahurangi harbour 48, **49**
- mangroves 50, 108
- Māori 24–8, 69, 137, 143
 - and coastal development 103
 - customary activities 9, 17, 39, 137
 - and freshwater bodies 116, 117
 - land, mapping 39
 - and landscapes 94, 95–6
 - and marine environment 26, 27–8, 110, 111, 112
 - relationship with natural and physical resources 9
 - RPS participatory process 24, 26, 27–8, 49
 - Treaty settlements 10, 26
 - values 20, 24, 25, 96
 - see also* iwi authorities; kaitiakitanga
- mapping 4, 36–8, 68–9
 - coastal environment 37–8, 39, 40, **41**, **44**, 101, 102, 103
 - content of maps 38
 - development 37, 38, 39, **41**, **42**
 - examples of maps 39, **41**, **42**, **43**, **44**, **45**
 - freshwater bodies 37, 38
 - landscapes 36, 37, 39, **42**, 94, 95, 97, 98
 - soils 39, 121

- Marine and Coastal Area (Takutai Moana) Bill 2010 27–8
- marine environment
 - biodiversity 74, 76, 110
 - coastal activities impacting on 83, 84–5, 86, 87, 110, 111–12
 - contaminants 83, 84, 85, 111–12
 - content of RPSs 112–13
 - habitat modification 74, 79, 110
 - habitat protection 112
 - impact of pollution on Hector's and Maui's dolphins 83, 84, 85
 - issues 110
 - monitoring 48–9, 76, 113
 - RMA provisions 110–12
 - susceptible to degradation 40, **43** and urban development 90
 - see also* aquaculture; fishing, adverse effects; tourism – marine mammal tourism
- marine farming, *see* aquaculture
- Marine Mammal Protection Act 1978 86, 126–32
- marine mammal sanctuaries 127, **128–32**
- marine mammals 83, 110, 112; *see also* Hector's dolphin; Maui's dolphin
- Marine Mammals Protection Regulations 1992 132
- marine reserves 110
- marine resources
 - kaimoana harvesting 110, 111
 - and kaitiakitanga 26, 27–8
 - see also* fisheries plans
- Marlborough District Council 79
- mātauranga Māori 20, 26
- Maui's dolphin 75
 - content of RPSs 86–7, 112, 127
 - distribution map **80**
 - habitat 40, **45**, 79
 - issues 78–9, 81–3
 - legislative provisions other than RMA 126–34
 - RMA provisions 84–6
- mining, seabed 83, 85, 86, 87, 110
- Ministry of Fisheries 48
- mitigation of adverse effects 9, 43, 61, 75, 84, 96, 98, 102, 103, 133, 140
- monitoring 69, 76
 - coastal hazard zones 108
 - design of system 64–5
 - examples of provisions 65
 - identification of regionally significant issues 48–9
 - indicators 64–5
 - lack of, first generation RPSs 5
 - landscape protection 97
 - legal requirements 64, 140
 - marine environment 48–9, 76, 113
 - procedures in RPSs, 11
 - water quality 118
- national importance, matters of 9, 30, 136–7, 143
- National Policy Statement on Electricity Transmission 9
- National Policy Statement on Freshwater Resources (proposed) 9–10
- National Policy Statement on Indigenous Biodiversity (proposed) 10
- national policy statements 5, 9–10, 50, 140, 144, 146
- natural and physical resources
 - content of RPSs 76
 - definition 8
 - identification 22, 36, 38
 - issues 74
 - regional significance 48
 - RMA provisions 75, 84
 - sustaining 8
 - see also* air quality; biodiversity; biodiversity loss; ecosystems; fauna, indigenous; marine resources; vegetation, indigenous; water pollution
- natural character 9, 38, 57–8, 60, 100, 101–2, 106, 110, 116, 117, 136
- natural features
 - coastal 96
 - example of objective 58
 - freshwater bodies 116
 - mapping 38
 - nationally important 9, 136
 - see also* landscapes, outstanding and significant
- natural hazards, *see* hazards, natural
- Nelson City Council 79
- New Zealand Coastal Policy Statement 2008 (proposed) 40, **45**
- New Zealand Coastal Policy Statement 2010 (NZCPS) 9, 75, 76, 100–2, 140
- coastal hazards 106–7

- and freshwater bodies 117
- and Hauraki Gulf Marine Park Act 2000 10, 145
- Hector's and Maui's dolphins 85
- heritage and cultural landscapes 95–6
- implementing through maps 37–8
- landscape protection 95, 96
- marine management 111–12
- natural character 101–2
- planning horizon 21
- tangata whenua 24, 26, 27
- urban development 90
- New Zealand Threat Classification System 75, 85
- Northland Regional Council 79
- Northland Regional Policy Statement 51–2, 53, 59–60
- nutrient management zones 37
- objectives of RPSs 11, 12, 13, 14, 15, 21, 32, 33, 36, 38, 68
 - characteristics 56
 - examples 57–8, 65
 - Hector's and Maui's dolphins 85
- oil spills 83
- organochlorines 83
- Otago Regional Council 79
- Otago Regional Policy Statement 61
- papakāinga development 26
- pests, introduced 51, 52, 74
- plastic debris 83, 87
- policies of RPSs 11, 12, 13, 14, 15, 21, 32, 33, 36, 38, 68
 - characteristics 59
 - definition 59
 - examples 59–61
 - Hector's and Maui's dolphins 85
- private plan changes 14, 15
- public access 9, 58, 104, 106, 116, 136
- public open space 95, 111
- regional councils 21, 52, 84–5, 140, 144–5
 - regional jurisdiction 14
- regional plans 4, 13, 15, 36, 56, 60, 144, 145, 146, 147
- regional policy statements (RPSs)
 - analysis and identification of issues 30, 36
 - changes 15, 138–9
 - checklist 68–9
 - coastal development 100–4
 - coastal hazards 107–8
 - combining with other plans 14, 20
 - components (elements) 11–13, 32–3
 - content 14, 139–40
 - design for the web 31
 - effect 15
 - evaluation 14
 - first generation 4–5, 24, 31, 56, 124
 - form and structure 30–2, 69
 - and growth management 90–1
 - and Hector's and Maui's dolphins 84–7
 - and landscapes 97
 - language 4, 5, 30
 - methods 11, 12, 13, 14, 15, 32, 33, 85
 - and natural resources, ecosystems and biodiversity 76
 - participatory process for tangata whenua 24, 26, 27–8, 49
 - planning horizon 21
 - regional legal variations 10
 - relationship to other regional planning documents 15–17, 20
 - relevance 30
 - review of provisions 11, 21, 24, 25, 27–8
 - requirements of legislation other than RMA 142, 144–7
 - requirements of RMA 4, 8, 9, 14, 138–40
 - role and purpose 4, 8, 20–2, 138
 - second generation 4, 5, 24, 27, 31, 56, 124
 - sub-regional chapters 31
 - substantive matters addressed 8–10
 - see also* objectives of RPSs; policies of RPSs
- regional significance, issues of
 - characteristics of good issues statement 50
 - description 48
 - examples of issues descriptions 51–4
 - identifying 48–50
 - key issues 50
 - underlying causes 50
- remediation of adverse effects 9, 58, 61, 65, 75, 76, 84, 95, 96, 98, 101–2, 104, 133
- resource consents 13, 37, 39, 64, 65, 102, 103, 144

- linkage with regional policy statements 5, 15
- resource management
 - see also* integrated resource management; natural and physical resources
- Resource Management Act 1991
 - s 5: 61, 84, 121
 - s 6: 9, 30, 58, 75, 84, 94, 95, 100, 106, 110, 116
 - s 7: 84, 121
 - s 30: 84–5, 86, 90, 121
 - s 32: 14, 26, 30, 142
 - s 33: 26
 - s 35: 64
 - s 42: 26
 - s 43: 146
 - s 52: 146
 - s 55: 144, 146
 - s 57: 146
 - s 59: 25
 - s 61: 15, 17, 27, 49, 142
 - s 62: 11, 64, 117
 - s 66: 142
 - s 75: 15
 - s 79: 21, 95, 142, 146
 - s 80: 14
 - s 214: 146
 - First Schedule 27, 145, 147
 - purpose and principles 136–7
 - relationship with Hauraki Gulf Marine Park Act 2000 144–5
 - requirements for regional policy statements 4, 8, 9, 14, 138–40; *see also* under specific topics, e.g. freshwater bodies
- restoration 58, 65, 76, 96, 101–2, 104
- rivers, *see* freshwater bodies
- rural areas 52, 53, 59, 91, 98, 100, 142
 - countryside living 39, 91
 - mapping 38, 39
 - residential development 69, 90, 94, 100, 103, 104, 121
- scientific information, linking with policy 37
- sediments and sedimentation 48, 50, 53, 69, 74, 83, 90, 106, 107, 112, 120
- seismic surveys 83, 127
- SMART objectives 56
- soil conservation 8
 - content of RPSs 121
 - example of issue description 51–2
 - issues 120–1
 - RMA provisions 121
 - RPS elements 13
 - see also* degradation, land
- soils
 - contamination 120
 - erosion 13, 51, 120, 121
 - mapping 39, 121
- Southland Regional Council 79
- Southland Regional Policy Statement 54
- strategic management 20, 21, 100, 102–3
- subdivisions 37, 51, 57, 58, 60, 94, 97, 98, 100, 102, 103, 106, 107, 108, 116, 121, 136, 137, 141
- sub-regional ecological units 31
- sustainability
 - fishing 86
 - focus of legislation 15
- taiāpure 17
- Taranaki Regional Council 79
- Tasman District Council 78
- Te Roroa Claims Settlement Act 2008 10
- Te Uri o Hau Claims Settlement Act 2002 10
- Te Waewae Bay Marine Mammal Sanctuary 127, **131**
- territorial authorities 11, 15, 21, 48, 76, 140, 144–5, 146–7; *see also* district councils
- threatened species 38, 53, 74, 75, 76, 85, 111, 112, 116
- Tokerau Bay **32**
- tourism 94, 110
 - marine mammal tourism 82–3, **82**
- transport
 - adverse effects 90
 - planning 15, 91
- Treaty of Waitangi 137
- urban environments 8
 - coastal 38, 39
 - growth management 90–1
 - impact of development on freshwater bodies 116
 - impact of development on soils 51–2, 121
 - landscape changes 94
 - mapping 37, 38, 39
 - policies 59
 - see also* development

- vegetation, indigenous 9, 53, 58, 65, 74, 75, 76, 101, 107, 110, 112, 116, 136; *see also* forests; threatened species
- vessels
 - impact on Hector's and Maui's dolphins 82–3, 85, 86, 87
 - and invasive species 111
- Waihi Beach **41**
- Waikato proposed Regional Policy Statement 21, 40, **44**, 52–3, 57, 145–6, 147
- Waikato region 10
- Waikato River 10
- Waikato River Authority 22
- Waikato-Tainui Raupatu Claims (Waikato River) Settlement Act 2010 10, 22, 145–7
- Waitakere Ranges **10**
- Waitakere Ranges Heritage Area Act 2008 10, 140–2
- wastewater 90, 91
- water conservation orders 117, 140, 146
- water pollution
 - biodiversity threat 74, 116
 - catchment run-off 48, 50, 52, 84, 86, 87, 90, 112
 - example of issue description 53–4
 - example of objectives 57, 65
 - examples of policies 60, 61
 - impact on Hector's and Maui's dolphins 83, 84, 85
 - improving water quality 8, 117–18
 - marine contaminants 83, 84, 85, 111–12
 - monitoring 65
 - nutrient enrichment 116, 120
 - and urban development 90
- weeds 51, 52, 74
- Wellington proposed Regional Policy Statement 32, 39, **42**, 53, 58
- Wellington Regional Strategy 39
- West Coast North Island Marine Mammal Sanctuary 127, **132**
- West Coast Regional Council 79
- West Coast Regional Policy Statement 58
- wetlands 53, 58, 74, 100, 103, 107, 108, 116, 117

Regional policy statements were some of the earliest documents prepared under the Resource Management Act 1991 when it came into force almost 20 years ago. Many are now under review with second generation documents being prepared.

Regional policy statements are very significant. They provide an integrated overview of how terrestrial, freshwater and marine resources will be managed. They also influence the content of regional and district plans which can include enforceable environmental rules. Unfortunately, most first generation regional policy statements have not lived up to their potential.

This Guide summarises learnings from first generation regional policy statements. It sets out what should be included in second generation documents to ensure that they drive a significant improvement in environmental outcomes on the ground.

The Guide is designed to provide practical guidance to all those involved in the development of regional policy statements. It will be invaluable for elected members and officers from regional councils and territorial authorities, officials from government agencies, iwi and hapū resource managers, and other stakeholders from the business, community and environmental sectors.

RAEWYN PEART is a Senior Policy Analyst for the Environmental Defence Society. She is a qualified lawyer, has a masters degree in commerce, and has worked on environmental law and policy issues for over 20 years. Raewyn has published widely on resource management issues.

PETER REABURN is Planning Manager and a Director of Cato Bolam Consultants. He holds a Bachelor of Regional Planning (Hons) degree and has worked as a planner in New Zealand for over 30 years. He has been a member of the New Zealand Planning Institute since 1982 and served on the Institute Council from 1996 to 1999. Peter has been a principal planning advisor to EDS since 2003.

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